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# TAB 3

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333 South Beaudry Ave,
Los Angeles, CA 90017

# Los Angeles Unified School District

## Board of Education Report

**File #:** Rep-073-24/25, **Version:** 1

**Certification of the Final Environmental Impact Report, Adoption of the Mitigation Monitoring and Reporting Plan, Findings of Fact and Statement of Overriding Considerations for the Irving STEAM Magnet Middle School Major Modernization Project**
**January 14, 2025**
**Office of Environmental Health & Safety**

**Action Proposed**:
Review and certify the Final Environmental Impact Report (EIR) and adopt the Findings of Fact, Mitigation Monitoring and Reporting Plan and Statement of Overriding Considerations for the proposed Irving STEAM Magnet Middle School Major Modernization Project (Project) prepared in compliance with the California Environmental Quality Act (CEQA) (Public Resources Code §21000 et seq.) and State CEQA Guidelines (California Code of Regulations, Title 14, Division 6, Chapter 3 §15000 et seq.).

**Background**:
On October 12, 2021, the Board approved the project definition for site due diligence, planning and feasibility activities necessary to propose scope recommendations, budget and schedule for the proposed Project (Board Report No. 085-21/22). Subsequently, on November 15, 2022, the Board approved the project redefinition for the proposed Project to begin the environmental review, design, procurement and other activities necessary to implement the proposed Project (Board Report No. 074-22/23).

The proposed Project is located within the 11.18-acre school campus at 3010 Estara Avenue within the Glassell Park/Los Feliz neighborhood in the City of Los Angeles (Board District 5, Region West). Irving STEAM Magnet Middle School (School) opened in 1937. All existing buildings were constructed between 1937 and 2004. The campus has been identified eligible as a historic district due to its depiction of a post-Long Beach Earthquake middle school campus that embodies Los Angeles Unified school planning and design concepts of the period and is an example of PWA (Public Works Administration) Moderne architecture applied to a middle school campus. The Administration Building, one-story Classroom Building, Homemaking Building and five relocatable buildings are identified as being located on an earthquake fault. As of the 2023-2024 Electronic Capacity Assessment Review (E-CAR), the School served approximately 800 students in grades 6 through 8 and the projected enrollment for planning purposes is 750 students.

The proposed Project will construct new facilities, including a two-story Classroom Building with 19 general and specialty classrooms and support spaces, library, student store and administration spaces; a one-story Maintenance & Operations Building with office and support spaces; and a one-story City of Angels Building with 2 general classrooms and support spaces. The proposed Project also includes the seismic retrofit of the existing Auditorium and infrastructure upgrades to ensure compliance with the Americans with Disabilities Act. The proposed Project will reduce the School's current capacity and total number of classrooms from 65 to 46 classrooms based on the planned/projected enrollment.

The proposed Project includes the demolition of three permanent buildings (two-story Administration Building, one-story Classroom Building and one-story Homemaking Building) and six relocatable buildings. Interim facilities will be installed to allow the School to remain operational and minimize impact during construction.

The proposed Project also includes utility upgrades; a campus-wide fire alarm upgrade; Internet Protocol (IP) convergence; new parking areas; new outdoor learning environments; the removal and replacement of trees; landscaping and irrigation; hardscaping; fencing, gates and site furnishings.

The Campus is not on any hazardous waste site lists under Section 65962.5 of the Government Code. A Preliminary Environmental Assessment-Equivalent (PEA-E) was conducted for the proposed Project in accordance with the Department of Toxic Substances Control (DTSC) guidelines. A Soil Removal Plan (SRP) would be implemented as part of the proposed Project to address the removal of contaminated soil. Similar reports would be prepared to address suspect asphalt and building materials encountered during construction. There is no direct student or staff exposure to the impacted soils since the affected soils are under asphalt pavement or will be off-limits. The SRP would ensure students and staff are not exposed to impacted soils during the removal work.

The District's Office of Environmental Health & Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq. This evaluation, as documented in the Initial Study, resulted in the preparation of a Draft Environmental Impact Report (EIR) (State Clearinghouse Number 2023120006). The Draft EIR focused on seven environmental areas: air quality; cultural resources; greenhouse gas emissions; hazards and hazardous materials; noise and pedestrian safety and transportation and traffic. The analysis documented in the Draft EIR found that the proposed Project would result in significant and unavoidable impacts to cultural resources. A Statement of Overriding Considerations by the Board for this impact will therefore be required.

The Draft EIR also evaluated two alternatives to the proposed Project: (1) No Project/No Development and (2) Retain Entire Administration Building (the Administration Building would remain as-is while other components of the project would proceed). Other alternatives that would rehabilitate or retain a portion of the Administration Building were determined to be infeasible and not further evaluated in the EIR. Both alternatives would result in fewer environmental impacts compared to the proposed Project. However, neither of them meet most of the District's objectives for the School Upgrade Program or the Project-specific objectives for the proposed Project.

The Draft EIR was circulated for a 45-day public review period from September 16, 2024 through October 31, 2024. Copies of the Draft EIR, PEA-E and SRP were available for review electronically on the OEHS website and on the State Clearinghouse website. Printed copies were also made available for public review at OEHS District Headquarters at Beaudry and at Irving STEAM Magnet Middle School.

The Notice of Availability of Draft EIR (Notice of Availability or NOA) was posted on the OEHS website during the public review period, mailed the NOA to all owner/occupants located within a 0.25-mile radius of the Project site, to parents/guardians of students and published the NOI in two local newspapers (Daily News and La Opinión). The NOA was filed with the Los Angeles County Clerk and with the State Clearinghouse for distribution to potentially affected state agencies, and the District mailed copies of the NOA directly to potentially affected state agencies, local agencies, tribal agencies pursuant to AB 52 and known interested parties.

During the public review period, a community meeting was held on October 17, 2024, to provide information about the Project and receive comments on the Draft EIR. The community meeting was advertised along with the NOA through direct mailing to occupants within 0.25-mile of the Project site, door-to-door distribution of event flyers and in two local newspapers (Daily News and La Opinión). The meeting included an overview of the proposed Project and the contents and findings of the Draft EIR and gave faculty, staff, agencies, organizations, parents/guardians and community members the opportunity to make verbal and written comments on the Project and the Draft EIR.

At the end of the public review period, the District received three comment letters from members of the community and verbal comments from individuals during the community meeting. All letters and verbal comments were responded to by the District and are included in the Final EIR, which was circulated for a 10-day agency review period beginning on December 16, 2024.

The District is the "Lead Agency" as defined in State CEQA Guidelines §§15050-15053 and the Board shall review and consider the attached Resolution which certifies the Final EIR and adopts the Findings of Fact, Mitigation Monitoring and Reporting Plan and Statement of Overriding Considerations for the proposed Project.

**Expected Outcomes**:
Staff anticipates that the Board will review and make a determination on the attached Resolution to certify the Final EIR, adopt the Findings of Fact, Mitigation Monitoring and Reporting Plan and Statement of Overriding Considerations, pursuant to CEQA and State CEQA Guidelines. This action is required for the Board to consider approving the proposed Project.

**Board Options and Consequences**:
A "yes" vote to certify the Final EIR and adopt the Findings of Fact, Mitigation Monitoring and Reporting Plan and Statement of Overriding Considerations would enable the LAUSD to proceed with the proposed Project as proposed in the Final EIR. A vote of "no" to certify the Final EIR and adopt the Findings of Fact, Mitigation Monitoring and Reporting Plan and Statement of Overriding Considerations would prevent the Board from approving the proposed Project and the proposed Project could not proceed into design and construction.

**Policy Implications**:
This action helps facilitate the Facilities Services Division Strategic Execution Plan and supports the goals and objectives of the School Upgrade Program (SUP). The proposed action advances Los Angeles Unified's 2022-2026 Strategic Plan, Pillar 4 Operational Effectiveness, Modernizing Infrastructure by upgrading facilities to support the instructional program.

**Budget Impact**:
This action does not have a budget impact.

**Student Impact**:
The proposed Project, once completed, will help ensure that the students attending the school are provided with safe and updated facilities that support learning.

**Equity Impact:**
The intent of the major modernization project is to address buildings and grounds that pose a safety concern and have the greatest need for upgrades with emphasis placed on seismic safety, reducing Los Angeles Unified's reliance on relocatable buildings and addressing the most critical/severe physical conditions. While the Project is extensive in nature, less critical items may not be addressed. This approach allows the District to reach more schools with the limited funding available.

**Issues and Analysis**:
Environmental review of the proposed Project found that, with the incorporation of District Standards and Specifications, mitigation measures, as well as all applicable state, federal and local regulations, there would be significant impacts related to cultural resources as a result of the proposed Project. This evaluation, as documented in the Initial Study and Draft EIR, resulted in the preparation of the Final EIR, Mitigation Monitoring and Reporting Plan, Findings of Fact and Statement of Overriding Considerations.

The District is the "Lead Agency" as defined in the State CEQA Guidelines §§15050-15053, and the Board shall review and consider the MND, MMRP and its supporting documents and comments.

**Attachments:**
- Attachment A: Resolution of the Los Angeles Unified School District Board of Education Certifying Final EIR and Adopting the Findings of Fact, Mitigation Monitoring and Reporting Plan, and Statement of Overriding Considerations for the proposed Irving Middle School Major Modernization Project

Due to the file size, Attachments B, C & D may be viewed/downloaded from the links below.

- Attachment B: Final EIR (including the Mitigation Monitoring and Reporting Plan)
  Final EIR & Mitigation Monitoring & Reporting Plan <https://drive.google.com/file/d/1FQ-TocY2iszNwxpT5FiQKk0dPb9EIwLA/view?usp=sharing>

- Attachment C: Draft EIR
  Draft EIR <https://drive.google.com/file/d/1SzOCi_nllizWm9jv6toghwi5nhaou0x-/view?usp=sharing>

- Attachment D: Technical Appendices
  Technical Appendices <https://drive.google.com/file/d/1OCSy68sJ6dNqP3ospi2bgbjxn9NsAis9/view?usp=drive_link>

- Attachment E: Findings of Fact and Statement of Overriding Considerations

Linked materials of previously adopted Board reports referenced in the background and policy implications sections:

- Adopted October 21, 2021, Board Report No. 085-21/22 <https://drive.google.com/file/d/17kLcgQ8nhS4OTKDw0QoEvk1o7b9JY1Q0/view?usp=sharing>

- Adopted November 15, 2022, Board Report No. 074-22/23 <https://drive.google.com/file/d/1rOfPyabIeppNv9vV-SGiH51IOZCmZR2q/view?usp=sharing>

**Informatives:**
None.

**Submitted:**
12/12/24

**File #:** Rep-073-24/25, **Version:** 1

**RESPECTFULLY SUBMITTED,**

ALBERTO M. CARVALHO
Superintendent

**APPROVED BY:**

PEDRO SALCIDO
Deputy Superintendent
Business Services & Operations

**REVIEWED BY:**

DEVORA NAVERA REED
General Counsel

✓ Approved as to form.

**APPROVED BY**

JAIME TORRENS
Senior Advisor to the Superintendent

**REVIEWED BY:**

NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

✓ Approved as to budget impact statement.

**APPROVED BY:**

CARLOS A. TORRES
Director
Office of Environmental Health & Safety

# LOS ANGELES UNIFIED SCHOOL DISTRICT
## Board of Education Resolution

**RESOLUTION OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT BOARD OF EDUCATION CERTIFYING THE FINAL ENVIRONMENTAL IMPACT REPORT, ADOPTING THE MITIGATION MONITORING AND REPORTING PLAN, FINDINGS OF FACT, AND STATEMENT OF OVERRIDING CONSIDERATIONS FOR THE IRVING STEAM MAGNET MIDDLE SCHOOL MAJOR MODERNIZATION PROJECT**

Whereas, on October 12, 2021, the Board approved the project definition for site due diligence, planning, and feasibility activities necessary to propose scope recommendations, budget and schedule for the proposed Project (Board Report No. 085-21/22). Subsequently, on November 15, 2022, the Board approved the project redefinition for the proposed Project to begin the environmental review, design, procurement and other activities necessary to implement the proposed Project (Board Report No. 074-22/23); and

Whereas, the proposed Project is located within the 11.18-acre school campus at 3010 Estara Avenue within the Glassell Park/Los Feliz neighborhood in the City of Los Angeles (Board District 5, Region West). Irving STEAM Magnet Middle School (School) opened in 1937. All existing buildings were constructed between 1937 and 2004. The campus has been identified eligible as a historic district due to its depiction of a post-Long Beach Earthquake middle school campus that embodies Los Angeles Unified school planning and design concepts of the period and is an example of PWA (Public Works Administration) Moderne architecture applied to a middle school campus. The Administration Building, one-story Classroom Building, Homemaking Building and five relocatable buildings are identified as being located on an earthquake fault. As of the 2023-2024 Electronic Capacity Assessment Review (E-CAR), the School served approximately 800 students in grades 6 through 8 and the projected enrollment for planning purposes is 750 students; and

Whereas, the proposed Project will construct new facilities, including a two-story Classroom Building with 19 general and specialty classrooms and support spaces, library, student store and administration spaces; a one-story Maintenance & Operations Building with office and support spaces; and a one-story City of Angels Building with 2 general classrooms and support spaces. The proposed Project also includes the seismic retrofit of the existing Auditorium and infrastructure upgrades to ensure compliance with the Americans with Disabilities Act. The proposed Project will reduce the School's current capacity and total number of classrooms from 65 to 46 classrooms based on the planned/projected enrollment; and

Whereas, the proposed Project includes the demolition of three permanent buildings (two-story Administration Building, one-story Classroom Building and one-story Homemaking Building), and six relocatable buildings. Interim facilities will be installed to allow the School to remain operational and minimize impact during construction; and

Whereas, the proposed Project also includes utility upgrades; a campus-wide fire alarm upgrade; Internet Protocol (IP) convergence; new parking areas; new outdoor learning environments; the removal and replacement of trees; landscaping and irrigation; hardscaping; fencing, gates and site furnishings; and

**LOS ANGELES UNIFIED SCHOOL DISTRICT**
**Board of Education Resolution**

Whereas, the Campus is not on any hazardous waste site lists under Section 65962.5 of the Government Code. A Preliminary Environmental Assessment-Equivalent (PEA-E) was conducted for the proposed Project in accordance with the Department of Toxic Substances Control (DTSC) guidelines. A Soil Removal Plan (SRP) would be implemented as part of the proposed Project to address the removal of contaminated soil. Similar reports would be prepared to address suspect asphalt and building materials encountered during construction. There is no direct student or staff exposure to the impacted soils since the affected soils are under asphalt pavement or will be off-limits. The SRP would ensure students and staff are not exposed to impacted soils during the removal work; and

Whereas, the District's Office of Environmental Health & Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq. This evaluation, as documented in the Initial Study, resulted in the preparation of a Draft Environmental Impact Report (EIR) (State Clearinghouse Number 2023120006). The Draft EIR focused on seven environmental areas: air quality; cultural resources; greenhouse gas emissions; hazards and hazardous materials; noise; and pedestrian safety and transportation and traffic. The analysis documented in the Draft EIR found that the proposed Project would result in significant and unavoidable impacts to cultural resources. A Statement of Overriding Considerations by the Board for this impact will therefore be required; and

Whereas, the Draft EIR also evaluated two Alternatives to the proposed Project: (1) No Project/No Development and (2) Retain Entire Administration Building (the Administration Building would remain as-is while other components of the project would proceed). Other alternatives that would rehabilitate or retain a portion of the Administration Building were determined to be infeasible and not further evaluated in the EIR. Both alternatives would result in fewer environmental impacts compared to the proposed Project. However, neither of them meet most of the District's objectives for the School Upgrade Program or the Project-specific objectives for the proposed Project; and

Whereas, the Draft EIR was circulated for a 45-day public review period from September 16, 2024 through October 31, 2024. Copies of the Draft EIR, PEA-E and SRP were available for review electronically on the OEHS website and on the State Clearinghouse website. Printed copies were also made available for public review at OEHS District Headquarters at Beaudry and at Irving STEAM Magnet Middle School; and

Whereas, the Notice of Availability of Draft EIR (Notice of Availability or NOA) was posted on the OEHS website during the public review period, mailed the NOA to all owner/occupants located within a 0.25-mile radius of the Project site, to parents/guardians of students and published the NOI in two local newspapers (Daily News and La Opinión). The NOA was filed with the Los Angeles County Clerk and with the State Clearinghouse for distribution to potentially affected State agencies, and the District mailed copies of the NOA directly to potentially affected state agencies, local agencies, tribal agencies pursuant to AB 52 and known interested parties; and

Whereas, during the public review period, a community meeting was held on October 17, 2024, to provide

**LOS ANGELES UNIFIED SCHOOL DISTRICT**
**Board of Education Resolution**

information about the Project and receive comments on the Draft EIR. The community meeting was advertised along with the NOA through direct mailing to occupants within 0.25-mile of the Project site, door-to-door distribution of event flyers and in two local newspapers (Daily News and La Opinión). The meeting included an overview of the proposed Project and the contents and findings of the Draft EIR and gave faculty, staff, agencies, organizations, parents/guardians, and community members the opportunity to make verbal and written comments on the Project and the Draft EIR; and

Whereas, at the end of the public review period, the District received three comment letters from members of the community and verbal comments from individuals during the community meeting. All letters and verbal comments were responded to by the District and are included in the Final EIR, which was circulated for a 10-day agency review period beginning on December 16, 2024; and

Whereas, the District is the "Lead Agency" as defined in State CEQA Guidelines §§15050-15053, and the Board shall review and consider the attached Resolution which certifies the Final EIR and adopts the Findings of Fact, Mitigation Monitoring and Reporting Plan and Statement of Overriding Considerations for the proposed Project.

Resolved, that the Board finds that:

The Project may not have an adverse effect on fish and wildlife, as referenced in §711.2 of the Fish and Game Code; and

The presumption of adverse effect set forth in California Code of Regulations, Title 14, §753.5(d) does not apply; and be it

Resolved further, that the Board hereby:

1. Finds that the Final EIR was completed in compliance with CEQA and State CEQA Guidelines, as amended; and

2. Finds that the Final EIR reflects the District's independent judgment and analysis; and

3. Finds that the Board reviewed and considered the information in the Final EIR before making a decision to approve the Project; and

4. Certifies the Final EIR; and

5. Adopts Findings of Fact; and

6. Adopts the Mitigation Monitoring and Reporting Plan for mitigation measures identified in the Final EIR; and

7. Adopts a Statement of Overriding Considerations; and be it

LOS ANGELES UNIFIED SCHOOL DISTRICT
**Board of Education Resolution**

Resolved further, that the Board specifies that the record of proceedings on which the Board's decision is based is located at the Los Angeles Unified School District, Office of Environmental Health and Safety, 333 South Beaudry Avenue, 21st Floor, Los Angeles, California and the custodian of the record of proceedings is the Office of Environmental Health and Safety.

**PASSED, APPROVED AND ADOPTED this 14th day of January 2025, by the following vote:**

**AYES:**

**NOES:**

**ABSENT:**

**ABSTAIN:**

______________________ ______________________

**Michael McLean**
**Executive Officer of the Board of Education**

**Date**

# Attachment B:

## Final EIR (including the Mitigation Monitoring and Reporting Plan)

Due to the file size, Attachments B may be viewed/downloaded from the links below.

https://drive.google.com/file/d/1FQ-TocY2iszNwxpT5FiQKk0dPb9EIwLA/view

# Attachment C:

## Draft EIR

Due to the file size, Attachments B may be viewed/downloaded from the links below.

https://drive.google.com/file/d/1SzOCi_nllizWm9jv6toghwi5nhaou0x-/view

# Attachment D:

## Technical Appendices

Due to the file size, Attachments B may be viewed/downloaded from the links below.

https://drive.google.com/file/d/1OCSy68sJ6dNqP3ospi2bgbjxn9NsAis9/view

November 2024 | Findings of Fact and Statement of Overriding Considerations
State Clearinghouse No. 2023120006

# **Irving Middle School**
# Major Modernization Project

*Prepared for:*

**Los Angeles Unified School District**
Office of Environmental Health and Safety
333 South Beaudry Avenue, 21st Floor
Los Angeles, California 90017
Contact: Edward Paek, AICP
Senior CEQA Project Manager
213-241-1000

*Prepared by:*

Sapphos Environmental, Inc.
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Statement of Overriding Considerations

# Irving Middle School
Major Modernization Project

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## Irving Middle School Major Modernization Project Findings of Fact and Statement of Overriding Considerations

# IRVING MIDDLE SCHOOL MAJOR MODERNIZATION PROJECT

Findings of Fact and Statement of Overriding Consideration

## 1. Background and Introduction

### 1.1 Project Overview

The LAUSD bond program began in 1997 with the initial focus on addressing overcrowded conditions—including the use of year-round multitrack calendars and busing of students to less crowded campuses—by providing new schools with traditional calendars. This goal was met with the opening of 131 new schools for K–12 students, allowing students to attend schools in their neighborhoods operating on a two-semester, single-track calendar. Since the completion of the New School Construction Program, the District's focus has shifted from constructing new facilities to correct decades of overcrowding, to addressing aging existing school facilities. The District's priority is to upgrade existing facilities and provide additional facilities to achieve the educational benefits of smaller learning environments.[1]

In 2014, the District embarked on a new bond-funded construction program known as the School Upgrade Program (SUP). Projects developed under the SUP framework focus on upgrading, modernizing, and replacing aging and deteriorating school facilities; updating technology; and addressing facilities inequities. Initially in 2014, $7.85 billion was allocated for the development of school projects. Since that time, new sources of funds have been allocated to the program, increasing the total amount of funds to support the development of projects to $9.2 billion. To date, nearly 2,000 projects valued at approximately $1.5 billion have been funded by the SUP and completed by LAUSD Facilities, and nearly 690 additional projects valued at approximately $5.4 billion are underway. The Program EIR for the 2014 SUP was certified by the Board on November 10, 2015.

Measure RR was passed in 2020 to help address the significant and unfunded needs of Los Angeles public school facilities. Measure RR is a $7 billion bond measure aimed at continuing the funding for improvement of facilities and technology, upgrade of existing facilities, as well as increased safety measures amid the COVID-19 pandemic. On August 24, 2021, the Board updated the SUP to allocate the Measure RR funds, adjusted the categories and spending targets within the program, and approved the Measure RR Implementation Plan to help guide the identification of sites and development of project proposals. Accordingly, the 2015 SUP Program EIR has since been replaced by the 2023 Subsequent Program EIR (SPEIR) that was certified by the Board on December 12, 2023.[2]

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1 Los Angeles Unified School District, Facilities Services Division. 2023. Strategic Execution Plan, p. 1.

2 Los Angeles Unified School District. 2023. *Subsequent Program EIR for the School Upgrade Program*. http://achieve.lausd.net/ceqa

The bond program is now focused on improving equity between newer and older schools so that every student has an equal opportunity for success. The updated SUP framework and the Measure RR Implementation Plan reflect the goals of and priorities for Measure RR, as outlined in the bond language approved by voters and the Proposed 2020 Bond Funding Priorities Package previously adopted by the Board. Moreover, they also reflect the input solicited earlier this year from Community of Schools Administrators and Local District leadership. The overarching goals and principals of the SUP, which will drive the development of future projects, are to upgrade, modernize, and replace aging and deteriorating District school facilities; update technology; and address District school facilities inequities to provide students with physically and environmentally safe, secure, and updated school facilities that support 21st-century learning.[3]

On October 12, 2021, the Board approved the project definition for site due diligence, planning, and feasibility activities for the Project to identify and prioritize the improvements needed at the Campus. On November 15, 2022, the Board approved the redefinition of the Project to provide facilities that are safe, secure, and better aligned with the current instructional program. The Project is designed to address the most critical physical concerns of the building and grounds at the Campus while providing renovations, modernizations, and reconfiguration as needed.[4]

The Project has been developed under the LAUSD's SUP to provide Measure RR funding to give every student access to safe, secure, and updated schools. Irving MS was identified as one of seven schools in the District most in need of an upgrade due to the physical condition of the facilities.[5] The primary objective of the Project is to address the most critical physical conditions and essential safety of the site, which includes alleviating seismic and structural risks discovered on the Campus. The three buildings on the Assembly Bill (AB) 300 list (Administration Building, Auditorium, and Physical Education Building) have structural deficiencies. The Administration Building has insufficient seismic gaps, overstressed shear walls and diaphragm openings that are too large. The Auditorium has insufficient wall anchorage and diagonal sheathing at the diaphragm. The Physical Education Building was found to have overstressed shear walls and insufficient wall anchorage at the diaphragm.

A fault is a fracture or zone of fractures between two blocks of rock.[6] Faults allow the blocks to move relative to each other. This movement may occur rapidly, in the form of an earthquake, or may occur slowly, in the form of creep. As stated in the Initial Study (Appendix 1 to the Draft EIR) and the Geotechnical Investigation Report (Appendix D to the Initial Study), multiple known earthquake faults have been mapped beneath the Campus. The Hollywood Fault is estimated to be located in the southern corner of the Campus running west beneath the New Classroom Building and the Soccer Field; the Raymond Fault is estimated to be located in the

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3 Based on: Los Angeles Unified School District, Facilities Services Division. August 24, 2021. Board of Education Report, Update to the School Upgrade Program to Integrate Measure RR Funding and Priorities.

4 Los Angeles Unified School District. 2015. LAUSD Board of Education Report – Amendment to the Facilities Services Division Strategic Execution Plan to Approve Project Definitions for 11 Comprehensive Modernization Project. Report. 16/17 ed. Vol. 205.

5 Los Angeles Unified School District. November 15, 2022. Board of Education Report (File #: Rep-074-22/23). Approve the Redefinition of Five Major Modernization Projects at 49th Street Elementary School, Canoga Park High School, Garfield High School, Irving Middle School, and Sylmar Charter High School, and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein.

6 U.S. Geological Survey (USGS). N.d. What Is a Fault and What Are The Different Types? https://www.usgs.gov/faqs/what-a-fault-and-what-are-different-types (accessed August 20, 2024).

north corner of the site running west beneath the Athletic Field; and a postulated fault is estimated to run west beneath the Homemaking Building, Classroom Building, Administration Building, and six bungalows. The Geotechnical Investigation mapped a postulated fault zone and 50-foot zone on either side of the fault zone to be excluded from new structure construction (see Figure 2, *Site Geologic Map*, in Appendix 1-D).

The Physical Education Building, while not located on the fault, is located within the 50-foot setback area where no new structure construction would occur under the Project. The Administration Building is located within the fault zone. The Classroom Building, Homemaking Building, New Classroom Building, Shop Building #2, and all six bungalow classrooms are also located in the fault zone.

## 1.2 Public Involvement and EIR Scoping

Pursuant to Section 15082 of the CEQA Guidelines, the lead agency is required to send a Notice of Preparation (NOP) stating that a Draft EIR will be prepared to the Governor's Office of Land Use and Climate Innovation (formerly the state Office of Planning and Research), responsible and trustee agencies, and federal agencies involved in funding or approving the Project, and County Clerk. The NOP must provide sufficient information for responsible agencies to make a meaningful response. At a minimum, the NOP must include a description of the project, location of the project, and probable environmental effects of the project (CEQA Guidelines Section 15082(a)(1)). Within 30 days after receiving the NOP, responsible and trustee agencies and the Office of Land Use and Climate Innovation shall provide the lead agency with specific detail about the scope and content of the environmental information related to that agency's area of statutory responsibility that must be included in the Draft EIR (CEQA Guidelines Section 15082(b)).

On December 1, 2023, in accordance with Sections 15063 and 15082 of the CEQA Guidelines, LAUSD published a NOP for the Draft EIR and circulated it to government agencies, elected officials, organizations, and persons who may be interested in the Project, including nearby landowners, student parents and/or legal guardians, homeowners, and tenants. The NOP requested comments on the scope of the Draft EIR and asked that those agencies with regulatory authority over any aspect of the Project describe that authority. The 35-day comment period went through January 5, 2024. The NOP provided a general description of the Project, a description of the Project area, and a preliminary list of potential environmental impacts.

On December 6, 2023, in accordance with CEQA Section 21083.9,[7] LAUSD sponsored a public scoping meeting to obtain comments from interested parties on the scope of the Draft EIR. The purpose of the meeting was to present the Project to the public through use of display maps, diagrams, and a presentation describing the Project components and potential environmental impacts. LAUSD staff and members of the local community attended the scoping meeting. Attendees were provided an opportunity to voice comments or concerns regarding potential effects of the Project. The issues addressed by participants are summarized and included in the Draft EIR as part of Appendix A. Five comment letters were received in response to the NOP, two comment cards were provided during the public scoping meeting, and a transcript from the public scoping meeting recorded verbal comments. Specific environmental concerns that were raised in the comments received on the NOP are discussed in Table 1.3-1, *Summary of NOP Comments*, of the Draft EIR.

[7] CEQA Section 21083.9 requires that a lead agency call at least one scoping meeting for a project of statewide, regional, or area wide significance.

Based on comments received during the scoping period, changes were made to the scope of the Project to reduce and/or avoid environmental effects. CEQA Guidelines Section 15083 encourages early consultation with interested parties to help identify "the range of actions, alternatives, mitigation measures, and significant effects to be analyzed in depth in an EIR and in eliminating from detailed study issues found not to be important." The revised Project Description is detailed in Chapter 2 of the Draft EIR.

The Draft EIR for the Irving MS Major Modernization Project was circulated for public review for 45 days between September 16, 2024, and October 31, 2024. While Section 15087 of the State CEQA Guidelines only requires giving notice by at least one of three prescribed methods, the District elected to use two of the prescribed methods in an effort to notify as wide an audience as possible. A Notice of Availability (NOA) of the Draft EIR was published in the *Los Angeles Daily News* and *La Opinión* and was also posted at the Project site. The NOA was distributed to responsible and trustee agencies, regulatory agencies, and other interested parties and stakeholders via certified mail. In addition, the NOA was distributed to all students and staff at Irving MS, and was distributed to all student guardians via direct mail.

The Draft EIR, Preliminary Environmental Assessment - Equivalent (PEA-E), and Soil Removal Plan (SRP) were made available for public review at the following locations:

- LAUSD Office of Environmental Health and Safety - 333 South Beaudry Avenue, 21st Los Angeles, CA 90017
- Irving Middle School Main Office – 3010 Estara Avenue, Los Angeles, California 90065

An electronic copy of the Draft EIR was also posted on the LAUSD OEHS website (http://achieve.lausd.net/CEQA) and the California State Clearinghouse website (https://ceqanet.opr.ca.gov).

A public meeting to solicit comments on the Draft EIR was held on October 17, 2024, for public comment. The meeting was transcribed, and the public comments are included as part of the Final EIR (Chapter 9, *Comment Letters and Response to Comments*). In addition, LAUSD received three comment letters during the public review period from individuals. Specific environmental concerns that were raised in the comments received on the NOA are discussed in Chapter 9 of the Final EIR.

# 2. Project Summary

## 2.1 Project Location

The approximately 11.2-acre Irving MS Campus is located at 3010 Estara Avenue (APNs 5458-019-900 [main parcel], 5458-018-903 [southwest of Moss Avenue], 5458-018-904, 5458-018-905, 5458-018-906, 5458-018-907, 5458-018-908, 5458-018-909, 5458-018-910, 5458-018-911, 5458-018-912, 5458-018-913, 5458-018-914, 5458-018-915, 5458-018-916, and 5458-018-917) in the community of Northeast Los Angeles (neighborhood of Glassell Park) within the City of Los Angeles (City) in Los Angeles County.[8] Within LAUSD, Irving MS is a part of Region West and the Board District 5. Regional access to the site is from State Route 2 by exiting on San Fernando Road, traveling northwest on San Fernando Road for approximately 0.2 miles, and then traveling northeast on Fletcher Drive for approximately 0.2 miles.

The Project site is bounded by Fletcher Drive to the northwest, Estara Avenue to the northeast, Marguerite Street to the southeast, West Avenue 32 to the southwest, and residential properties and neighborhood commercial properties in the western corner. Additionally, Moss Avenue and Roswell Street are City-owned rights-of-way that run through the Campus and connect Fletcher Drive to Estara Avenue. The Project does not involve any structural work on the City streets; therefore, the Project site consists of 11.2 acres of the Campus, not including the City rights-of-way. Additionally, there may be some asphalt replacement and parking lot restriping occurring on these streets. Regionally, the Project site is approximately 0.01 miles north and approximately 0.1 miles west of State Route 2, approximately 1.5 miles east of I-5, and approximately 2.6 miles south of State Route 134.

The Campus is located on the U.S. Geological Survey (USGS) 7.5-minute series Los Angeles quadrangle, within a valley between the San Rafael Hills to the north (with elevations of 1,600+ feet above mean sea level [msl]), the hills of Mount Washington to the east (with elevations of 900+ feet above msl), Elysian Heights to the south (with elevations of 650+ feet above msl), and Griffith Park to the west (with elevations of 1,400+ feet above msl). The Project site is sloped downwards on all sides from the Campus core towards the surrounding land uses, with the lowest point in the southernmost corner, and has an elevation that ranges from approximately 390–391 to 415–416 feet above msl.

## 2.2 Project Characteristics

The Project addressed in this Findings of Fact and Statement of Overriding Considerations is the Washington Irving MS Major Modernization Project. Irving MS currently primarily serves Grades 6 through 8 (middle school) through a Science, Technology, Engineering, Art, and Math (STEAM) Magnet Program and hosts two additional specialized instructional programs in addition to the STEAM Magnet Program: Isana Octavia Charter (kindergarten [K] through 8th grade) and City of Angels Community School (K through 12th grade). In total, the Campus currently has an enrollment of approximately 1,100 students.

[8] City of Los Angeles. N.d. ZIMAS. https://zimas.lacity.org/ (accessed August 22, 2023).

The Project would include modernization of the Irving MS Campus as part of LAUSD's School Upgrade Program (SUP) to facilitate a safe and secure Campus that is better aligned with the current instructional program and meets current Division of the State Architect (DSA) requirements and educational specifications. Structurally vulnerable buildings located on an identified earthquake fault would be demolished and replaced by a new building that would improve educational quality and safety for students and staff. The Project also includes essential upgrades including seismic retrofit of the Auditorium Building outside of the earthquake fault, the removal of barriers and other accessibility upgrades, and various landscape and hardscape improvements. The Project would result in demolition and/or modifications to existing buildings, including historic buildings and resources. However, the Project would be designed to preserve and/or enhance character-defining features associated with the Campus, while avoiding the earthquake fault. Additionally, the Project would be designed and implemented in a manner that complies with the LAUSD Design Guidelines and Treatment Approaches for Historic Schools. Upon completion of Project construction, the Project would reduce the total number of standard classrooms on the Campus from 65 to 46 to accommodate the long-term needs of the school and community, while providing additional outdoor learning and gathering spaces for its students. The Project would include the following changes to Campus Buildings:

- 62,442 square feet of permanent building demolition, located directly over the identified earthquake fault (Homemaking Building, Classroom Building, and Administration Building)
- 12,172 square feet of portable building removal, six relocatable buildings in the northwest corner of the Campus and one accessory service structure
- 62,000 square feet of new building construction:
  - One, approximately 56,000-square-foot, two-story building that would house 19 classrooms and support spaces, administration offices, library, and other building service spaces
  - One, approximately 2,500-square-foot, Maintenance and Operation (M&O) Building
  - One, approximately 3,500-square-foot, modular building accommodating two classrooms and support spaces to be used by the City of Angels Community School to the north of the identified fault and vacated Moss Avenue cul-de-sac
- 14,957 square feet of permanent building seismic retrofit for the Auditorium
- 64,485 square feet of existing building to remain

The Project also provides for ADA upgrades impacted by the Project scope. Interim housing would be provided to ensure the school is fully operational throughout construction. After completion of the Project, the City of Angels Community School program would remain elsewhere on Campus, and the Isana Octavia Charter School would be relocated off Campus. The Project would not result in an increase in enrollment at Irving MS; it would modernize the existing school for the safety of existing students.

The Project would improve portions of the parking lots and playgrounds that are located on District property. Any areas located directly above the fault would be transformed into outdoors areas, such as hardscape, landscape, or parking areas. The Project does not anticipate any reconfiguration or relocation of the four existing vehicular points of entry. One new vehicular point of entry would be added along Marguerite Street to provide access to new parking stalls. With development of the Project, all existing pedestrian points of entry would remain except for "Octavia Gate 3," which serves as the City of Angels Entrance along Fletcher Drive. This entrance would be relocated, as the City of Angels would be relocated on-Campus.

On-Campus circulation would be modified due to new and reconfigured landscaped, hardscaped, and parking areas on Campus. Campus parking would be reduced from 149 existing spaces by 69 parking spaces during construction and replaced with 24 new parking spaces for an overall total of 104 parking spaces for the Project. The Project would remove approximately 45 parking spaces south of Roswell Street in order to accommodate the new Administration and Classroom Building. Additional parking spaces on the Campus may be removed and/or reconfigured to accommodate new landscaping or hardscape areas, such as basketball courts. Upon completion of the Project, the minimum parking requirements would be either met or exceeded. Required parking and adequate vehicle circulation also would be maintained throughout the duration of construction.

## 2.3 Project Objectives

State CEQA Guidelines Section 15124 requires an EIR to include a statement of objectives sought by a proposed project. Four objectives have been established for the SUP and will aid decision makers in their review of the Project and associated environmental impacts:

1. Repair aging schools and improve student safety.
2. Upgrade schools to modern technology and educational needs.
3. Create capacity to attract, retain, and graduate more students through a comprehensive portfolio of small, high-quality pre-K through adult schools.
4. Promote healthier environment through green technology.

Furthermore, the District has established six core principles/objectives for the scoping of major modernization projects. The core principles of major modernization project scoping are as follows:[9]

1. Buildings meeting AB 300 criteria for seismic evaluation may be addressed, to the extent feasible, with a focus on those determined to have a high seismic vulnerability, through retrofit, removal, or seismic modernization, which will be determined based on an assessment of the seismic vulnerability of the building(s), the historic context of the building/site, actual or potential impact to the learning environment, site layout, and the approach that best ensures compliance with Division of the State Architect (DSA) requirements.

[9] Los Angeles Unified School District. November 15, 2022. Board of Education Report (File #: Rep-074-22/23). Approve the Redefinition of Five Major Modernization Projects at 49th Street Elementary School, Canoga Park High School, Garfield High School, Irving Middle School, and Sylmar Charter High School, and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein.

2. The buildings, grounds, and site infrastructure that have significant/severe physical conditions that already do or are highly likely in the near future to pose a health and safety risk, or negatively impact a school's ability to deliver the instructional program and/or operate may be addressed by repair or replacement.
3. The District reliance on relocatable buildings, especially for K–12 instruction, should be reduced.
4. Necessary and prioritized upgrades must be made throughout the school site in order to comply with the program accessibility requirements of the Americans with Disabilities Act (ADA) Title II Regulations, and the District's Self-Evaluation and Transition Plan under Title II of the ADA.
5. The exterior conditions of the school site will be enhanced around new buildings and/or areas impacted by construction to improve the visual appearance including landscape and hardscape.
6. Outdoor learning environments will be developed where the site layout and project planning provide the opportunity.

The Project would substantially modernize the Irving MS Campus. The Project would be completed under LAUSD's SUP. As such, the goals of the Project are consistent with the SUP's goal to build, modernize, and repair school facilities to improve student health, safety, and educational quality.[10]

LAUSD has established the following objectives for the Project:

- **Objective #1:** Buildings meeting AB 300 criteria for seismic evaluation may be addressed, to the extent feasible, with a focus on those determined to have a high seismic vulnerability, through retrofit, removal, or seismic modernization, which will be determined based on an assessment of the seismic vulnerability of the building(s), the historic context of the building/site, actual or potential impact to the learning environment, site layout, and the approach that best ensures compliance with Division of the State Architect (DSA) requirements.
- **Objective #2:** The buildings, grounds, and site infrastructure that have significant/severe physical conditions that already do or are highly likely in the near future to pose a health and safety risk, or negatively impact a school's ability to deliver the instructional program and/or operate may be addressed by repair or replacement.
- **Objective #3:** The District reliance on relocatable buildings, especially for K–12 instruction, should be reduced.
- **Objective #4:** Necessary and prioritized upgrades must be made throughout the school site in order to comply with the program accessibility requirements of the Americans with Disabilities Act (ADA) Title II Regulations, and the District's Self-Evaluation and Transition Plan under Title II of the ADA.

[10] Los Angeles Unified School District. 2023. *Subsequent Program EIR for the School Upgrade Program*. http://achieve.lausd.net/ceqa

- **Objective #5:** The exterior conditions of the school site will be enhanced around new buildings and/or areas impacted by construction to improve the visual appearance including landscape and hardscape.

- **Objective #6:** Outdoor learning environments will be developed where the site layout and project planning provide the opportunity.

# 3. Environmental Findings

## 3.1 Findings Regarding Impacts Identified in the Initial Study to Be Less than Significant and Requiring No Further Study

The Initial Study that was prepared for the Project and circulated with the NOP determined that some of the impacts would not occur or would be less than significant; therefore, these impact topics were not further analyzed in the EIR. Refer to Appendix 1 of the Draft for the Initial Study.

### Aesthetics

- **Scenic Vista** – Less than Significant Impact
- **Scenic Resources** – No Impact
- **Visual Character** – Less than Significant Impact
- **Light and Glare** – Less than Significant Impact

### Agriculture and Forestry Resources

- **Convert Prime Farmland, Unique Farmland, or Farmland of Statewide Importance** – No Impact
- **Williamson Act Contract** – No Impact
- **Timberland** – No Impact
- **Forest Land** – No Impact
- **Other Changes** – No Impact

### Air Quality

- **Odors** – Less than Significant Impact

### Biological Resources

- **Candidate, Sensitive, or Special Status Species** – No Impact
- **Riparian Habitat/Sensitive Natural Community** – No Impact
- **Wetlands** – No Impact
- **Wildlife Migration** - Less than Significant Impact
- **Local Policies/Ordinances Protecting Biological Resources** – Less than Significant Impact
- **Conservation Planning –** No Impact

### Cultural Resources

- **Archaeological Resource** – Less than Significant Impact
- **Human Remains** – Less than Significant Impact

## Energy

- **Energy Consumption –** Less than Significant Impact
- **State/Local Plan –** No Impact

## Geology and Soils

- **Alquist-Priolo Fault Rupture** – No Impact
- **Seismic Ground Shaking** – No Impact
- **Ground Failure including Liquefaction** – No Impact
- **Landslides** – No Impact
- **Erosion or Loss of Topsoil** – Less than Significant Impact
- **Unstable Geologic Unit** – Less than Significant Impact
- **Expansive Soils** – Less than Significant Impact
- **Septic Tanks** – No Impact
- **Paleontological Resource** – Less than Significant Impact

## Hazards and Hazardous Materials

- **Airport Land Use Plan** – No Impact
- **Emergency Planning** – No Impact
- **Wildland Fires** – No Impact

## Hydrology and Water Quality

- **Water Quality Standards** – Less than Significant Impact
- **Groundwater Recharge** – No Impact
- **On- or Off-site Erosion or Siltation** – No Impact
- **On- or Off-site Flooding** – Less than Significant Impact
- **Runoff Water Quality** – No Impact
- **Flood Flows** – No Impact
- **Inundation by seiche, tsunami, or mudflow** – No Impact
- **Runoff –** No Impact

## Land Use and Planning

- **Divide an Established Community** – No Impact
- **Conflict with Applicable Plans and/or Policies** – No Impact

## Mineral Resources

- **Regional Mineral Resources** – No Impact
- **Local Mineral Resources** – No Impact

## Noise

- **Private Airstrips** – No Impact

## Population and Housing

- **Population Growth** – No Impact
- **Displacement of People/Housing** – No Impact

## Public Services

- **Fire Protection** – No Impact
- **Police Protection** – No Impact
- **Schools** – No Impact
- **Parks** – No Impact
- **Other Public Facilities** – No Impact

## Recreation

- **Accelerated Deterioration of Existing Facilities** – No Impact
- **Construction or Expansion of Recreational Facilities Causing Adverse Physical Effect on Environment** – No Impact

## Transportation and Circulation

- **Vehicle Miles Traveled** – Less than Significant Impact

## Tribal Cultural Resources

- **Tribal Cultural Resources** – Less than Significant Impact
- **California Register of Historical Resources** – Less than Significant Impact
- **Significance to Native American Tribe** – Less than Significant Impact

## Utilities

- **Construction or Relocation of water, wastewater treatment or stormwater drainage, electric power, natural gas, telecommunication facilities –** No Impact
- **Water Supplies** – No Impact
- **Inadequate Wastewater Treatment Capacity** – No Impact
- **Landfill Capacity** – No Impact
- **Solid Waste Regulations** – No Impact

## Wildfire

- **Located in High Fire Severity Zone** – Less than Significant Impact
- **Emergency plans** – Less then Significant Impact
- **Pollutant Concentration** – Less than Significant Impact
- **Require Installation of Infrastructure That May Impact the Environment** – Less than Significant Impact
- **Exposure to Flooding/Landslides** – Less than Significant Impact

# 3.2 Findings Regarding Impacts Identified in the EIR to Be Less than Significant and Requiring No Mitigation

## Air Quality

**Impact 3.1-1:** The Project would result in less than significant impacts in relation to conflict with, or obstruct, implementation of the applicable air quality plan.

**Impact 3.1-2:** The Project would result in less than significant impacts in relation to a cumulatively considerable net increase of any criteria pollutant for which the project region is non-attainment under an applicable federal or state ambient air quality standard.

**Impact 3.2-3**: The Project would result in less than significant impacts in relation to exposing sensitive receptors to substantial pollutant concentrations.

**Cumulative Impacts**

The Project would result in less than significant impacts in relation to resulting in a cumulatively considerable impact in relation to conflict with, or obstruct, implementation of the applicable air quality plan.

The Project would result in less than significant impacts in relation to a net increase of any criteria pollutant for which the project region is non-attainment under an applicable federal or state ambient air quality standard.

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to exposing sensitive receptors to substantial pollutant concentrations.

## Cultural Resources

**Cumulative Impacts**

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to a substantial adverse change in the significance of a historical resource pursuant to Section 15064.5.

## Greenhouse Gas Emissions

**Impact 3.3.1:** The Project would result in less than significant impacts in relation to generating greenhouse gas emissions, either directly or indirectly, that may have a significant impact on the environment.

**Impact 3.3.2:** The Project would result in no impacts in relation to conflict with an applicable plan, policy or regulation adopted for the purpose of reducing the emissions of greenhouse gases.

**Cumulative Impacts**

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to generating greenhouse gas emissions, either directly or indirectly, that may have a significant impact on the environment.

The Project would result in no impacts in relation to a cumulatively considerable impact in relation to conflict with an applicable plan, policy or regulation adopted for the purpose of reducing the emissions of greenhouse gases.

## Hazards and Hazardous Materials

**Cumulative Impacts**

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to creating a significant hazard to the public or the environment through the routine transport, storage, production, use, or disposal of hazardous materials.

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to reasonably foreseeable upset and accident conditions involving the release of hazardous materials or waste into the environment.

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to emitting hazardous emissions or handle hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school.

The Project would result in no impacts in relation to a cumulatively considerable impact in relation to being located on a site which is included on a list of hazardous materials sites compiled pursuant to Government Code § 65962.5 and, as a result, would it create a significant hazard to the public or the environment.

## Noise

**Impact 3.5-1:** The Project would result in less than significant impacts in relation to generation of a substantial temporary or permanent increase in ambient noise levels in the vicinity of the project in excess of standards established in the local general plan or noise ordinance, or in other applicable local, state, or federal standards.

**Impact 3.5-2:** The Project would result in less than significant impacts in relation to generation of excessive groundborne vibration or groundborne noise levels.

**Cumulative Impacts**

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to generation of a substantial temporary or permanent increase in ambient noise levels in the vicinity of the project in excess of standards established in the local general plan or noise ordinance, or in other applicable local, state, or federal standards.

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to generation of excessive groundborne vibration or groundborne noise levels.

## Pedestrian Safety

**Impact 3.6-1:** The Project would result in less than significant impacts in relation to substantially increasing vehicular and/or pedestrian safety hazards due to a design feature or incompatible uses.

**Impact 3.6-2:** The Project would result in less than significant impacts in relation to creating unsafe routes to schools for students walking from local neighborhoods.

**Impact 3.6-3:** The Project would result in less than significant impacts in relation to being located on a site that is adjacent to or near a major arterial roadway or freeway that may pose a safety hazard.

**Cumulative Impacts**

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to substantially increasing vehicular and/or pedestrian safety hazards due to a design feature or incompatible uses.

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to creating unsafe routes to schools for students walking from local neighborhoods.

The Project would result in less than significant impacts in relation to being located on a site that is adjacent to or near a major arterial roadway or freeway that may pose a safety hazard.

## Transportation

**Impact 3.7-1:** The Project would result in less than significant impacts in relation to conflict with a program, plan, ordinance, or policy addressing the circulation system, including transit, roadway, bicycle, and pedestrian facilities.

**Impact 3.7-3:** The Project would result in less than significant impacts in relation to substantially increasing hazards due to a geometric design feature (e.g., sharp curves or dangerous intersections) or incompatible uses (e.g., farm equipment).

**Impact 3.7-4:** The Project would result in less than significant impacts in relation to resulting in inadequate emergency access.

**Cumulative Impacts**

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to conflict with a program, plan, ordinance, or policy addressing the circulation system, including transit, roadway, bicycle, and pedestrian facilities.

The Project would result in less than significant impacts in relation to a cumulatively considerable impact in relation to substantially increasing hazards due to a geometric design feature (e.g., sharp curves or dangerous intersections) or incompatible uses (e.g., farm equipment).

The Project would result in less than significant impacts in relation to resulting in a cumulatively considerable impact in relation to inadequate emergency access.

# 3.3 Findings Regarding Impacts Analyzed in the EIR and Determined to Be Significant but Mitigated to Less than Significant

## Hazards and Hazardous Materials

**Impact 3.4-1:** The Project could create a significant hazard to the public or the environment through the routine transport, storage, production, use, or disposal of hazardous materials.

### Facts in Support of the Finding

**Pre-construction:** Pre-construction activities could result in significant impacts with regard to the routine transport, storage, production, use or disposal of hazardous materials as a result of removal and transport of potentially hazardous materials located within the building, removal and transport of an underground storage tank (UST) and removal and transport of impacted soils. The Preliminary Environmental Assessment Equivalent (PEA-E; Appendix 1-F to the Draft EIR) determined if the soil with the highest concentrations of arsenic is removed (approximately 0.5 foot of topsoil), then the 95% upper confidence limit for arsenic can be reduced to 6.43 milligrams per kilogram (mg/kg), bringing it below the LAUSD's screening level of 12 mg/kg. Asbestos-impacted soil is a heath concern if the soil is disturbed, and the PEA-E recommended removal of the shallow soil prior to invasive activities at these locations in accordance with the SCAQMD Rule 1403 Asbestos Demolition and Removal standards.

As a result of the potential impacts of removal, transport, and disposal of impacted soils and the UST, CES developed a Draft Soil Removal Plan (SRP; Appendix 4 to the Draft EIR) that addresses the transport, storage, and disposal of potentially hazardous soils on the site and subsequently addressed potential for impacts during pre-construction via a set of requirements for impacted soil transport and UST removal, which are outlined in the plan. The SRP provides instructions for excavation and offsite disposal of arsenic- and asbestos-impacted soil in accordance with LAUSD standards. The SRP also provides guidance procedures for removal of the former UST prior to the start of construction activities. Finally, the SRP outlines required compliance measures with South Coast Air Quality Management District (SCAQMD) rule 1466 and 403 as the Project has a potential to release airborne volatile organic compounds (VOCs) during removal of the UST. Specific guidance is provided regarding SCAQMD requirements for air monitoring for VOCs. Additional safety measures, documentation, and cohesive planning to reduce impacts of impacted soils and UST removal have been identified in Mitigation Measures MM-HAZ-1: Soil Management Plan; MM-HAZ-2: SCAQMD Rule 1166 Monitoring during Soil Excavation; MM-HAZ-3: Dust Control Plan; and MM-HAZ-4: Compliance Inspections.

Compliance with the SRP and MM-HAZ-1 through MM-HAZ-4 during pre-construction activities is aligned with the guidance of the U.S. Environmental Protection Agency's (EPA) hazardous waste transportation regulations. The contaminated soils onsite will require transportation offsite, thereby creating a potential impact to the surrounding community. As outlined in the SRP, and MM-HAZ-1, transport of any contaminated soils will be conducted by an EPA and U.S. Department of Transportation (DOT) qualified transporter of hazardous materials as outlined in Title 40 of the code of Federal Regulations Part 263.[11] These requirements include obtaining an EPA ID number, complying with EPA's Hazardous Waste Manifest System, and obeying all applicable DOT hazardous materials regulations.

During demolition and disposal of asbestos-containing soils, there is a potential for hazardous particles to enter the air and soil. Any pre-construction soil removal that includes asbestos-impacted soils shall be completed in compliance with all regulations set forth in SCAQMD Rule 1403. These include surveying, notifications, ACM removal procedures and time schedules, as well as the handling, clean-up, storage, disposal, and landfilling of ACM. Rule 1403 also requires all operators to maintain records, including waste shipment records, appropriate warning labels, signs, and markings.[12] LAUSD OEHS Site Assessment Team manages environmental project activities related to site investigations of existing District properties and new acquisitions. State and local agencies, such as the DTSC and SCAQMD, have rules and regulations to address potentially toxic or hazardous conditions on or in the vicinity of existing school sites. The LAUSD Site Assessment Team should be consulted prior to construction activities to approve the routine transport, storage, production, use, or disposal of hazardous materials as a result of removal and transport of impacted soils as well as UST removal activities.

Compliance with the regulations discussed above, with instructions outlined in the SRP, and with the specific mitigation measure, MM-HAZ-1 through MM-HAZ-4 will limit the potential for impacts related to the routine transport, storage, production, use, or disposal of hazardous materials during pre-construction. Therefore, this impact would be less than significant.

**Construction:** Construction of the Project could result in significant impacts with regard to the routine transport, storage, production, use, or disposal of hazardous materials due to the potential for the site to have residual impacted soils, and from demolition of asbestos or lead containing building materials. Compliance with MM HAZ-1 includes compliance with the EPA's hazardous waste transportation regulations. The potentially contaminated soils onsite will require transportation offsite, thereby creating a potential impact to the surrounding community. As outlined in the SRP and as required by MM-HAZ-1, transport of any contaminated soils will be conducted by an EPA and DOT qualified transporter of hazardous materials as outlined in Title 40 of the Code of Federal Regulations Part 263.[13] These requirements include obtaining an EPA ID number, complying with EPA's Hazardous Waste Manifest System, and obeying all applicable DOT hazardous materials regulations.

During demolition and disposal of asbestos-containing structures, there is a potential for hazardous particles to enter the air and soil. Any demolition activities that include asbestos removal shall be completed in compliance with all regulations set forth in SCAQMD Rule 1403. These include surveying, notifications, asbestos-containing materials (ACM) removal procedures and time schedules, as well as the handling, clean-up, storage, disposal, and landfilling of ACM. Rule 1403 also requires all operators to maintain records including

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11 U.S. Environmental Protection Agency. May 21, 2023. Hazardous Waste Transportation. https://www.epa.gov/hw/hazardous-waste-transportation

12 Rule 1403. Asbestos Emissions from Demolition/Renovation Activities. October 5, 2007. https://www.aqmd.gov/docs/default-source/rule-book/reg-xiv/rule-1403.pdf

13 U.S. Environmental Protection Agency. May 21, 2023. Hazardous Waste Transportation. https://www.epa.gov/hw/hazardous-waste-transportation

waste shipment records, appropriate warning labels, signs, and markings.[14] MM-HAZ-3 provides additional measures such as application of water, wind speed and wind direction monitoring, and airborne particulate monitoring to prevent hazardous particles from asbestos or impacted soils entering air space as a result of construction activities. Finally, site compliance inspections of the working areas shall be conducted by the Environmental Consultant or designated site manager to ensure ongoing compliance with regulations and mitigation measures as outlined in MM-HAZ-4.

Compliance with the regulations discussed above, with instructions outlined in the SRP, and with the specific mitigation measures MM-HAZ-1, MM-HAZ-3, and MM-HAZ-4 would limit the potential for impacts related to the routine transport, storage, production, use, or disposal of hazardous materials during construction to less than significant. Potential impacts associated with activities during construction would be less than significant with implementation of federal, state, local, and LAUSD regulations and compliance with MM-HAZ-1 and MM-HAZ-3.

**Operation:** The Project would result in less than significant impacts during operation with regard to the routine transport, use, or disposal of hazardous materials during operation. The school's day-to-day operations do not require routine transport or use of significant amounts of hazardous materials. However, the school's lab classes and maintenance workers may produce small amounts of hazardous waste. Wastes generated by these sources shall be tracked and disposed of in accordance with all applicable LAUSD guidelines including, but not limited to, Disposal Procedures for Hazardous Waste and Universal Waste (REF-4149.2),[15] the LAUSD OEHS Environmental Guidance Manuals,[16] and the Environmental Compliance Guidance Manual for Science Centers guidelines,[17] which identifies types of hazardous waste that could be present at schools, LAUSD approved chemicals,[18] proper chemical storage and handling, and tracking, transport, and disposal of hazardous waste that may be present at the school.[19]

## Mitigation Measures

Implementation of the following mitigation measure is required to reduce impacts to hazards and hazardous materials during pre-construction and construction:

> **MM-HAZ-1: Soil Management Plan.** A soil management plan shall be required for all earth-moving construction activities conducted at the site. The purpose of the soil management plan is to provide

14 Rule 1403. Asbestos Emissions from Demolition/Renovation activities. October 5, 2007. https://www.aqmd.gov/docs/default-source/rule-book/reg-xiv/rule-1403.pdf

15 Los Angeles Unified School District. June 12, 2020. Los Angeles Unified School District Reference Guide. Disposal Procedures for Hazardous Waste and Universal Waste. REF-4149.2. https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/REF-4149.2%20Hazardous%20Waste%20.pdf

16 Los Angeles Unified School District Office of Environmental Health and Safety. 2020. Environmental Compliance/Hazardous Waste. https://www.lausd.org/Page/2798

17 Los Angeles Unified School District. N.d. Environmental Guidance Manual for Science Centers. https://www.lausd.org/cms/lib/CA01000043/Centricity/domain/135/pdf%20files/EnvironmentalGuidanceManualforScienceCenters11-06.pdf

18 Los Angeles Unified School District. January 21, 2005. LAUSD approved Chemicals list (inventory list) https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/Approved%20Chemical%2011-9-2023.pdf

19 Los Angeles Unified School District Office of Environmental Health and Safety. 2014. Chemical Hygiene and Labels. https://www.lausd.org/Page/3987

guidance for identifying impacted soil and the proper handling, onsite management, and disposal of impacted soil that may be encountered during construction activities. The soil management plan shall be prepared by a licensed State of California Civil Engineer or Professional Geologist. The soil management plan shall include the following sections at a minimum.

- Introduction
- Background
- Potential Contaminants of Concern
- Contaminated Soil Management
- Health and Safety
- Excavation/Grading Contractor
- Identification of Contaminated Soil
- Excavation and Handling of Contaminated Soil
- Soil Staging
- Dust Mitigation and Track-Out Controls
- Stormwater Management
- Waste Characterization and Profiling
- Transportation Requirements and Procedures
- Requirements for Haulers
- Truck Loading Operations
- Transportation Route
- Traffic Control Procedures
- Shipment Documentation
- Contingency Plan
- Soil Sampling and Analysis Protocol
- Confirmation Soil Sampling
- Screening Levels
- Actions Based on Soil Results
- Reporting
- References

Before excavation or other soil-disturbing activities begin, a preparatory inspection must be conducted by the Contractor to ensure the proper soil management provisions, including initiation of the DigAlert notification(s) and stormwater Best Management Practices (BMPs) are evaluated.

**MM-HAZ-2: SCAQMD Rule 1166 Monitoring During Soil Excavation** – Implementation of the soil management plan shall include precautions and monitoring for soil potentially impacted by chemicals of concern previously identified. This mitigation measure specifically addresses air monitoring requirements during the underground storage tank (UST) removal activities prior to excavation and grading activities conducted during building renovation. During the UST removal activities air monitoring shall be implemented using a Photo-ionization Detector (PID) to monitor for volatile organic compounds (VOCs). The PID shall have a 11.7 eV lamp and shall be calibrated daily using the manufacturer suggested calibration gas. If soil releasing VOCs above 50 parts per million by volume (ppmv) is identified, the South Coast Air Quality Management District (SCAQMD) shall be notified regarding the renovation work at the subject property. A site-specific permit shall be obtained for the Project due its location at a school property. Excavation activities shall be performed in compliance with all applicable SCAQMD regulations.

**MM-HAZ-3: Dust Control Plan** – A dust control plan shall be required for all construction activities conducted on the site. The primary dust control requirement is for no visible dust to exit the site during construction activities.

Dust control measures will be required daily during earth-moving activities to limit emissions of fugitive dust generated by their activities. The contractor is responsible for meeting requirements specified in Rule 403 and implementing reasonable Best Available Control Measures (BACMs) to minimize dust emissions. The following dust control measures shall be implemented to stabilize exposed surfaces and minimize suspended or tracked dust particles:

- Apply water to excavation areas to minimize dust generated by vehicles, trucks, and heavy equipment.
- Apply water to the staged soil piles before and during loading of trucks, and after completion of loading for the day.
- Adequately tarp truck trailers, and clean truck tires as necessary prior to leaving the Site. Place shaker plates on the ingress and egress routes to the Site.
- Cover and secure staged soil piles at the end of each day.

Wind speed and wind direction shall be monitored at 15-minute intervals using a tripod-mounted weather station with data logging capabilities.

Airborne particulate monitoring shall be conducted with aerosol monitors near the property boundary at locations upwind (one) and downwind (one) of excavation activities with an aggregate particle diameter of 10 microns or less ($PM_{10}$). The monitors shall provide real-time concentration and median particle size information and shall log the data at one-minute intervals for the duration of the monitoring period. The dust monitors shall be zeroed daily and an action level of 25 micrograms per cubic meter ($\mu g/m^3$) (per Rule 1466) shall be established and measured as the difference between upwind and downwind monitors.

**MM-HAZ-4: Compliance Inspections** – Site compliance inspections of the working areas shall be conducted by the Environmental Consultant or designated site manager to determine if any failed compliance has occurred. Stop-work orders shall be promptly issued if any failed compliance has occurred and corrective actions shall be immediately implemented to address the noncompliant issue.

Impacts would be less than significant after implementation of MM-HAZ-1 through MM-HAZ-4 and compliance with the SRP due to the requirements of precise excavation, handling, testing, transportation, and disposal of arsenic and asbestos-impacted soil. The SRP and MM-HAZ-1 through MM-HAZ-4 address potential health risks to construction workers, onsite students and staff, and surrounding residents through implementation of a soil management process intended to close potential exposure routes to potentially impacted soils. Additionally, the plan will minimize offsite migration of potentially impacted soils during excavation, soil stockpiling, and transportation of soil offsite for disposal. As a result, the SRP and MM HAZ-1 through 4 would reduce impacts to a less than significant level in relation to the public or the environment through the routine transport, storage, production, use, or disposal of hazardous materials during construction.

### Finding

Pursuant to CEQA Guidelines Section 15091 (a)(1), changes or alterations have been required in, or incorporated into, the Project which avoid or substantially lessen the significant environmental effect to a level of less than significant as identified in the Draft EIR.

**Impact 3.4-2:** The Project could create a significant hazard to the public or the environment through reasonably foreseeable upset and accident conditions involving the release of hazardous materials or waste into the environment.

### Facts in Support of the Finding

The Project would result in potentially significant impacts with regard to the upset and accident conditions involving the release of hazardous materials or waste into the environment. As discussed in the PEA-E, the Project site contains one unidentified UST located to the north of the Administration Building and arsenic and asbestos-impacted soil to a depth of six inches. Removal of the UST and contaminated soils, as well as their transport for disposal during construction, creates a potential for release of hazardous materials through upset or accident conditions. Potentially hazardous soils have been reported and identified in the site-specific SRP, and procedures for investigation, removal, transport, and disposal of the suspected UST are also outlined in the SRP. Additional measures to ensure no upset or accident conditions are encountered are outlined in MM-HAZ-1 through MM-HAZ-4. Compliance with the SRP for UST removal, as outlined in the project description, regulatory measures, and the additional requirements outlined in MM-HAZ-1 through MM-HAZ-4 will ensure the significant impacts with regard to the upset and accident conditions involving the release of hazardous materials or waste into the environment would be less than significant.

**Pre-construction:** According to the Phase I Environmental Site Assessment (ESA) (Appendix 1-A to the Draft EIR), Irving MS was listed in the following environmental databases: CERS Hazwaste, Hazmat, HAZNET, FTTS, RCRA-LQR, FINDS, and ECHO. Violations regarding failures to maintain Hazardous Waste Manifests, active generator permit, and improper labeling were reported in 2015, 2016, 2018, and 2019. The site is listed in the HAZNET database for the tracking of generated hazardous waste including asbestos-containing waste from 1990 to 2019; and laboratory waste, paint sludge, and organics from 1997 to 2014. The Phase I ESA conducted at the school identified several potentially hazardous materials that were unlabeled, or areas of the Administration Building that may contain hazardous materials but were not accessible at the time of the investigation. As a result of the unidentified potentially hazardous materials located in the basement of the Administration Building, there is potential for upset or accident conditions involving the release of hazardous materials or waste into the environment due to improper or incomplete removal of these materials before the start of construction. Therefore, removal of all materials from the school prior to demolition shall be conducted as outlined in the LAUSD OEHS Environmental Disposal Procedures for Hazardous Waste and Universal Waste,[20] specifically in the paint storage room, Shop #1, the boiler room, and several locked rooms located at basement level of the Administration Building. Each of these locations were identified in the Phase I ESA as containing hazardous materials. With compliance with LAUSD guidelines, impacts regarding upset or accident conditions while removing unidentified hazardous materials would be less than significant.

**Construction:** The Project would have less than significant impacts with regard to upset and accident conditions involving the release of hazardous materials or waste into the environment during construction due to the actions taken in pre-construction, and as a result of ongoing compliance with MM-HAZ-1 through MM-HAZ-4. As discussed above, compliance measures outlined in the SRP for removal of the UST and impacted soils prior to construction start would reduce the potential for contaminated soils to be present onsite. Compliance with LAUSD OEHS Environmental Disposal Procedures for Hazardous Waste and Universal Waste[21] would ensure no potentially hazardous materials are located onsite when construction activities start. Finally, continual compliance with MM-HAZ-1, 3, and -4, which outline additional requirements for soil management, dust control, and continual monitoring, would reduce the chance for upset and accident conditions and potential release of hazardous materials or waste into the environment during construction to a less than significant level.

**Operation:** The Project would result in a less than significant impact to the public or the environment during operation through reasonably foreseeable upset and accident conditions involving the release of hazardous materials or waste into the environment because operation of the existing school would continue to comply with the LAUSD OEHS Environmental Guidance Manual for Maintenance and Operations, which addresses waste streams generated by operation and maintenance of a school facility and transportation and tracking requirements for disposal of hazardous wastes at a School Hazardous Waste Collection Consolidation Accumulation Facility.[22] These guidance documents include labeling and tracking of materials within the school to prevent potential accident conditions as a result of unidentified or improperly handled materials.

In addition, Irving MS is required to adhere to the Environmental Compliance Guidance Manual for Science Centers,[23] which identifies types of hazardous waste that could be present at schools, LAUSD approved chemicals,[24] proper chemical storage and handling including suggested chemical storage patterns, chemical

20 Los Angeles Unified School District. June 12, 2020. Los Angeles Unified School District Reference Guide. Disposal Procedures for Hazardous Waste and Universal Waste. REF-4149.2 https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/REF-4149.2%20Hazardous%20Waste%20.pdf

21 Los Angeles Unified School District. June 12, 2020. Los Angeles Unified School District Reference Guide. Disposal Procedures for Hazardous Waste and Universal Waste. REF-4149.2 https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/REF-4149.2%20Hazardous%20Waste%20.pdf

22 Los Angeles Unified School District Office of Environmental Health and Safety. 2020. Environmental Compliance/Hazardous Waste. https://www.lausd.org/Page/2798

23 Los Angeles Unified School District. N.d. Environmental Guidance Manual for Science Centers. https://www.lausd.org/cms/lib/CA01000043/Centricity/domain/135/pdf%20files/EnvironmentalGuidanceManualforScienceCenters11-06.pdf

24 Los Angeles Unified School District. January 21, 2005. LAUSD Approved Chemicals List (inventory list) https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/Approved%20Chemical%2011-9-2023.pdf

storage compatibility categories, and proper labeling.[25] As a result, these impacts would be less than significant during school operation.

### Mitigation Measures

Mitigation Measures MM-HAZ-1 through MM-HAZ-4, listed above, would reduce pre-construction and construction hazard impacts.

Impacted soils, the presence of a UST, and the presence of unidentified and potentially hazardous materials on the Project site pose impacts related to upset and accident conditions involving the release of hazardous materials or waste into the environment. Compliance with the SRP would ensure careful and proper removal of the UST, and the SRP outlines specific areas where impacted soils must be removed. MM-HAZ-1 would reduce the potential for accident conditions via detailed outline of contaminates of concerns and subsequent measures outlining soil management onsite, including, but not limited to, characterization, excavation and handling, staging, transportation, contingency plans, sampling, and reporting requirements. MM-HAZ-2 details specific requirements and action levels for monitoring for VOCs during UST removal, while MM-HAZ-3 outlines best available control measures (BACMs) for dust and particulate management and outlines quantifiable monitoring requirements to be maintained from pre-construction through buildout. MM-HAZ-4 would ensure all regulations and mitigation measures are being met. Finally, compliance with LAUSD OEHS Environmental Disposal Procedures for Hazardous Waste and Universal Waste,[26] when disposing of hazardous materials currently stored on the school grounds, would reduce the impacts with regard to the upset and accident conditions involving the release of hazardous materials or waste into the environment to a less than significant level.

### Finding

Pursuant to CEQA Guidelines Section 15091 (a)(1), changes or alterations have been required in, or incorporated into, the Project which avoid or substantially lessen the significant environmental effect to a level of less than significant as identified in the Draft EIR.

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**Impact 3.4-3:** The Project could emit hazardous emissions or handle hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school.

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### Facts in Support of the Finding

The Project would result in significant impacts regarding hazardous emissions or handling of hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school. During the construction phase, it is possible school attendants could come in contact with emissions of PCBs,

[25] Los Angeles Unified School District Office of Environmental Health and Safety. 2014. Chemical Hygiene and Labels. https://www.lausd.org/Page/3987

[26] Los Angeles Unified School District. June 12, 2020. Los Angeles Unified School District Reference Guide. Disposal Procedures for Hazardous Waste and Universal Waste. REF-4149.2 https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/REF-4149.2%20Hazardous%20Waste%20.pdf

asbestos, paints, petroleum products, or fugitive dust from soil (see Phase I ESA and PEA-E). However, SC-HAZ-4 would ensure that the following guidelines are followed: District Specification Section 01 4524, Environmental Import / Export Materials Testing; Soil Removal Plan; California Air Resources Board Rule 1466 Guidelines and Procedures to Address PCBs in Building Materials, particularly applicable to buildings that were constructed or remodeled between 1959 and 1979; lead and asbestos abatement requirements identified by the Facilities Environmental Technical Unit in the Phase I/Phase II; or abatement plan(s). It should be noted that the school is located within a moderate radon zone.[27] The Phase I ESA listed the school as being located in a high radon zone. The high radon zone is defined as having a high potential for radon levels to be above 4 picocuries per liter (pCi/L). As stated in the Los Angeles Unified School District Reference Guide REF-5314.2, Procedures for Environmental Review of Proposed Projects: "building design and construction Measures – Should a building or similar structure be constructed or renovated for student and/or staff occupancy and is located in a 'high' radon zone, EPA guidance entitled "Radon Prevention in the Design and Construction of Schools and Other Large Buildings, EPA/625/R-92/016, June 1994" (or latest published version) shall be followed and all relevant and appropriate measures incorporated in its design and construction to prevent radon gas infiltration" (see the LAUSD Radon Memorandum in Draft EIR Appendix 1-A). Although the Phase I ESA states the Project site is located in a "high radon zone," Sapphos Environmental, Inc. reviewed the California Department of Conservation Map of Indoor Radon Potential, which listed the Project site as being in a moderate zone for indoor radon potential.[28] The LAUSD OEHS does not require radon testing or mitigation for school sites in moderate radon zones.[29]

**Pre-construction:** The Project would result in significant impacts regarding hazardous emissions or handling hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school due to the Project's location on a school campus, and the identification of contaminated soils, asbestos, and a UST within the Project boundaries. Impacts associated with activities during pre- construction activities would be less than significant with implementation of MM-HAZ-1 through MM-HAZ-4 and compliance with the SRP.

The PEA-E reported hazardous materials in soil including arsenic and asbestos, an existing former UST, ACM, and undisclosed materials in the basement level of the administration building. The contaminated soils, UST, and ACM and their handling shall be managed through compliance with the SRP, as well as additional soil management requirements outlined in MM-HAZ-1; air monitoring requirements for VOCs during removal of the UST, as outlined in MM-HAZ-2; specific particulate monitoring requirements and dust control BMPs outlined in MM-HAZ-3; and ongoing compliance inspections outlined in MM-HAZ-4. In addition, all activities must adhere to all applicable LAUSD, local, state, and federal laws and regulations, specifically when removing potentially hazardous materials from the basement level of the Administration Building, which contained various substances that were either labeled as hazardous or could not be identified. The removal and handling

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27 California Department of Conservation. 2016. Indoor Radon Potential Map. https://maps.conservation.ca.gov/cgs/radon (accessed October 30, 2023).

28 California Department of Conservation. 2016. Indoor Radon Potential. https://maps.conservation.ca.gov/cgs/radon/ (accessed February 26, 2024).

29 Los Angeles Unified School District. June 12, 2017. Reference Guide. Procedures for Environmental Review of Proposed Projects. https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/Ref_Guide_5314.2_Procedures_for_Envir_Rev_of_Proposed_Projects_w_Att.pdf

of undisclosed materials within the building prior to demolition shall be conducted in accordance with the LAUSD OEHS Environmental Guidance Manual for Maintenance and Operations, which addresses waste streams generated by operation and maintenance of a school facility and transportation and tracking requirements for disposal of hazardous wastes at a School Hazardous Waste Collection Consolidation Accumulation Facility.[30] These guidance documents include directions for the tracking, transport, and disposal of hazardous waste that could be present at the school. As a result of these measures, the impacts related to handling hazardous or acutely hazardous substances or waste within one-quarter mile of an existing or proposed school would be reduced to a less than significant level during pre-construction activities.

**Construction:** Some phases of construction may be conducted during school operating hours. Due to the impacted soils and the potential presence of asbestos and arsenic, there would be significant impacts regarding hazardous emissions or handling hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school. These impacts would be reduced through compliance with the SRP, proper removal of potentially hazardous materials from the construction site prior to construction, and MM-HAZ-1 through 4 during pre-construction. The residual impacts would be further mitigated via continued compliance with MM-HAZ-1, MM-HAZ-3, and MM-HAZ-4 for the entirety of construction activities. As a result, the impacts related to handling hazardous or acutely hazardous substances or waste within one-quarter mile of an existing or proposed school would be reduced to a less than significant level during construction.

**Operation:** The Project would comply with the LAUSD OEHS Environmental Guidance Manual for Maintenance and Operations, which addresses waste streams generated by operation and maintenance of a school facility and transportation and tracking requirements for disposal of hazardous wastes at a School Hazardous Waste Collection Consolidation Accumulation Facility.[31] In addition, Irving MS is required to adhere to the Environmental Compliance Guidance Manual for Science Centers,[32] which identifies types of hazardous waste that could be present at schools, identifies LAUSD approved chemicals,[33] proper chemical storage, and handling.[34] Therefore, the Project would result in less than significant impacts with regard to hazardous emissions or handling hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school during operation.

### Mitigation Measures

Mitigation Measures MM-HAZ-1 through MM-HAZ-4 would reduce pre-construction and construction hazard impacts.

30 Los Angeles Unified School District Office of Environmental Health and Safety. 2020. Environmental Compliance/Hazardous Waste. https://www.lausd.org/Page/2798

31 Los Angeles Unified School District Office of Environmental Health and Safety. 2020. Environmental Compliance/Hazardous Waste. https://www.lausd.org/Page/2798

32 Los Angeles Unified School District. N.d. Environmental Guidance Manual for Science Centers. https://www.lausd.org/cms/lib/CA01000043/Centricity/domain/135/pdf%20files/EnvironmentalGuidanceManualforScienceCenters11-06.pdf

33 Los Angeles Unified School District Office of Environmental Health and Safety. January 21, 2005. LAUSD Approved Chemical List (Inventory List). https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/Approved%20Chemical%2011-9-2023.pdf

34 Los Angeles Unified School District Office of Environmental Health and Safety. 2014. Chemical Hygiene and Labels. https://www.lausd.org/Page/3987

Impacted soils, the presence of a UST, and the presence of unidentified and potentially hazardous materials on the Project site would result in impacts related to emitting hazardous emissions or handle hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school. Compliance with the SRP would ensure careful and proper removal of the UST, and the SRP outlines specific areas where impacted soils must be removed. MM HAZ-1 would reduce accident conditions via detailed outline of potential contaminates of concerns and subsequent measures to completely manage soil onsite including but not limited to characterization, excavation and handling, staging, transportation, contingency plans, as well as sampling and reporting requirements. MM-HAZ-2 details specific requirements and action levels for monitoring for VOCs during UST removal, while MM-HAZ-3 outlines BACMs for dust and particulate management and outlines quantifiable monitoring requirements to be maintained from pre-construction to final completion. MM-HAZ-4 would ensure all regulations and mitigation measures are being met. Finally, compliance with LAUSD OEHS Environmental Disposal Procedures for Hazardous Waste and Universal Waste[35] when disposing of hazardous materials currently stored on the school grounds would reduce the impacts related to emitting hazardous emissions or handle hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing or proposed school to be a less than significant level.

### Finding

Pursuant to CEQA Guidelines Section 15091 (a)(1), changes or alterations have been required in, or incorporated into, the Project which avoid or substantially lessen the significant environmental effect to a level of less than significant as identified in the Draft EIR.

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**Impact 3.4-4:** The project would be located on a site which is included on a list of hazardous materials sites compiled pursuant to Government Code § 65962.5 and, as a result, would it create a significant hazard to the public or the environment.

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### Facts in Support of the Finding

The site is not listed on the California Department of Toxic Substances Control (DTSC) EnviroStor database or the State Water Resources Control Board (SWRCB) GeoTracker database.[36,37] The Project site is not listed as a known hazardous waste site. The Los Angeles County Department of Public Health, Los Angeles Regional Water Quality Control Board, Los Angeles County Fire Department, and DTSC reported that they had no files pertaining to the site address. No records indicating the presence of any environmental conditions were

[35] Los Angeles Unified School District. June 12, 2020. Los Angeles Unified School District Reference Guide. Disposal Procedures for Hazardous Waste and Universal Waste. REF-4149.2 https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/REF-4149.2%20Hazardous%20Waste%20.pdf

[36] California Department of Toxic Substances Control (DTSC). N.d. EnviroStor: 3010 Estara Ave, Los Angeles, CA 90065. Available at: https://www.envirostor.dtsc.ca.gov/public/map/?myaddress=3010+Estara+Ave+Los+Angeles (accessed August 10, 2023).

[37] California State Water Resources Control Board. N.d. GeoTracker: 3010 Estara Ave, Los Angeles, CA 90065. Available at: https://geotracker.waterboards.ca.gov/map/?CMD=runreport&myaddress=3010+Estara+Ave+Los+Angeles (accessed August 10, 2023).

provided by SCAQMD. However, during site investigations, several recognized environmental conditions were identified.

**Pre-construction:** The Project would result in impacts regarding creating a significant hazard to the public or the environment due to location on a listed hazardous materials site. A PEA-E was prepared to address data gaps from the Phase I ESA investigation. Soil samples were collected from 0.5, 2.5 and 5 feet below ground surface (bgs) and were screened for chemicals of potential concern including lead, arsenic, organochlorine pesticides (OCPs), polychlorinated biphenyl (PCBs), total petroleum hydrocarbons (TPH), polyaromatic hydrocarbons (PAHs), and asbestos (Chrysotile). The PEA-E identified elevated levels of lead in 10 locations during initial screening and elevated levels of arsenic in eight locations during initial screening. Asbestos was detected in two locations. In addition to soil sampling, a geophysical investigation was conducted on the parking lot area adjacent to the Administration Building due to the suspected presence of an underground storage tank. Two significant anomalies were detected during this investigation within a 35-foot by 100-foot area, both of which are typical of those associated with a UST. It was determined that a UST and concrete containment layer were present, and sampling results confirmed the presence of gasoline, diesel, and oil range hydrocarbons with the highest concentration coming from diesel-range hydrocarbons at 3,400 mg/kg at approximately 13 feet, 8 inches bgs. It is anticipated that there was piping associated with the UST, but the exact location was not identified. The UST is not identified on the GeoTracker database, which identifies known leaking underground storage tanks (LUST) and their associated cleanup sites; however, it may be added to this site pending further investigation of the UST. The UST and contaminated soils would be removed in accordance with the SRP and in compliance with MM-HAZ-2, and the Project would comply with MM-HAZ-1 for the entirety for construction activities, including tracking and documentation of site conditions with appropriate agencies, thereby reducing this impact to a less than significant level.

**Operation:** The Phase I ESA investigation found that, according to the EDR database report, the site is listed in the FTTS, CERS Hazwaste, Hazmat, HAZNET, RCRA-LQG, FINDS and ECHO databases. The site is listed in the FTTS database for a probably lead-based paint investigation in 2005. The site is listed in the RCRA-LQG, CERS Hazwaste and Hazmat databases for the tracking of generated hazardous waste. Violations regarding failures to maintain hazardous waste manifests, active generator permits, and improper labeling were reported in 2015, 2016, 2018, and 2019. The site is listed in the HAZNET database for the tracking of generated hazardous waste including asbestos-containing waste from 1990 to 2019; and laboratory waste, paint sludge, and organics from 1997 to 2014. It should be noted that the site is listed in these databases for tracking purposes and, therefore, its presence on these sites does not represent an environmental concern, and the potential to create a significant hazard to the public or the environment is low. Compliance with all applicable LAUSD tracking, labeling, storing and disposal guidance[38] would ensure that this impact would be less than significant.

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[38] Los Angeles Unified School District Office of Environmental Health and Safety. 2020. Environmental Compliance/Hazardous Waste. https://www.lausd.org/Page/2798

[38] Los Angeles Unified School District. N.d. Environmental Guidance Manual for Science Centers. https://www.lausd.org/cms/lib/CA01000043/Centricity/domain/135/pdf%20files/EnvironmentalGuidanceManualforScienceCenters11-06.pdf

[38] Los Angeles Unified School District Office of Environmental Health and Safety. January 21, 2005. LAUSD Approved Chemical List (Inventory List). https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/135/Approved%20Chemical%2011-9-2023.pdf

### Mitigation Measures

Mitigation Measures MM-HAZ-1 and MM-HAZ-2 would reduce pre-construction and construction hazard impacts.

Compliance with the SRP and MM-HAZ-2 for removal of the UST would result in impacts that are less than significant with regard to the site being included on a list of hazardous materials sites compiled pursuant to Government Code Section 65962.5 during pre-construction. MM-HAZ-2 requires that samples are collected around the site of the UST to identify whether the tank had been leaking and exposed surrounding soils to VOCs. Pending the results of the required sampling, the tank may need to be reported to the California Water Boards' GeoTracker database, which would support tracking of cleanup and prevent potential hazards to the public or environment due to an unidentified LUST. Compliance with MM-MAZ-1 for the entirety of construction activities including tracking and reporting site conditions to appropriate agencies as well as compliance with all LAUSD guidelines for tracking, labeling, and disposing of chemicals onsite prior to construction and during operations and maintenance would result in impacts that are less than significant during construction and operation. As a result of compliance with the SRP and MM-HAZ-1 and MM-HAZ-2, there would not be a significant hazard to the public or the environment with regard to the site being included on a list of hazardous materials sites compiled pursuant to Government Code Section 65962.5. Therefore, the impacts would be less than significant with the implementation of mitigation measures.

# 3.4 Findings Regarding Impacts Analyzed in the EIR and Determined to Be Significant and Unavoidable

## Cultural Resources

**Impact 3.2-1:** The Project would result in a substantial adverse change in the significance of a historical resource pursuant to Section 15064.5.

### Facts in Support of the Finding

The Campus is eligible for federal, state, or local, designation and is considered to be a historical resource for the purpose of CEQA.[39] Irving MS was given a status code of 3S, or recommended eligible for listing in the National Register of Historic Places (NRHP) as a historic district, through survey evaluation.[40] The district is comprised of six contributor buildings, namely, the Administration Building, Auditorium, Physical Education Building, Cafeteria, Shop No. 1, and Shop No. 2, all built from 1937 to 1939 and all associated with the themes

[38] Los Angeles Unified School District Office of Environmental Health and Safety. 2014. Chemical Hygiene and Labels. https://www.lausd.org/Page/3987

[39] ASM Affiliates, Inc. 2022. Historic Resource Evaluation Report: Irving Middle School. Prepared for Los Angeles Unified School District, Office of Environmental Health & Safety. P. 16.

[40] Heumann, Leslie, & Associates, and Anne Doehne. 2002. Historic Schools of the Los Angeles Unified School District. Science Applications International Corporation, a presentation prepared for LAUSD Facilities Services Division.

identified as significant within the themes of the PWA Moderne style and LAUSD, Post-1933 Long Beach Earthquake School Plants, 1933–1945 (see Table 3.4-1, *HRER Historic District Eligibility: Recommended Contributors to the Washington Irving Middle School District*).[41] None of the six contributors to the eligible historic district are individually eligible historic resources.

**TABLE 3.4-1**
**HRER HISTORIC DISTRICT ELIGIBILITY:**
**RECOMMENDED CONTRIBUTORS TO THE WASHINGTON IRVING MIDDLE SCHOOL DISTRICT**

| Building Name | Year Designed/ Constructed | Architect | Contributor to Eligible Historic District? | Individually Eligible? | NRHP and CRHR Criteria | California SHPO Status |
|---|---|---|---|---|---|---|
| Administration | 1936/1937 | Bergstrom | Yes | No | A/1 and C/3 | 3D |
| Auditorium | 1939 | Bergstrom | Yes | No | A/1 and C/3 | 3D |
| Physical Education | 1936/1937 | Bergstrom | Yes | No | A/1 and C/3 | 3D |
| Cafeteria | 1937 | Nibecker | Yes | No | A/1 and C/3 | 3D |
| Shop No. 1 | 1937 | Nibecker | Yes | No | A/1 | 3D |
| Shop No. 2 | 1937 | Nibecker | Yes | No | A/1 | 3D |

**Source:** Historical Resource Evaluation Report (Appendix 1-B to the Draft EIR), Table 1, *Recommended Contributors/Noncontributors to the Washington Irving Middle School Historic District*.

**Note:** NRHP = National Register of Historic Places; CRHR = California Register of Historical Resources; SHPO = State Historic Preservation Officer.

**A/1:** Events; associated with events that have made a significant contribution to the broad patterns of history. The Washington Irving Middle School Historic District exemplifies school planning, design, and earthquake-resistant construction under the theme of LAUSD, Post-1933 Long Beach Earthquake School Plants.

**C/3:** Architecture; embodies the distinctive characteristics of a type, period, or method of construction, or that represents the work of a master, or that possesses high artistic values, or that represents a significant and distinguishable entity whose components may lack individual distinction. Irving MS was described in the HRER as an excellent intact example of PWA Moderne architecture applied to a middle school campus, and an important example of the work of Los Angeles Architect Edwin L. Bergstrom. For Irving MS, he worked with District Architect Alfred S. Nibecker, Jr.

**3D:** Appears eligible for National Register (NR) as a contributor to a NR eligible multi-component resource through survey evaluation.

A Historic Resources Technical Report (HRTR) was prepared as part of the Draft EIR that evaluates the potential for implementation of the Project to substantially change the significance of an identified historical resource (see Appendix 5 to the Draft EIR). As discussed therein, the Project includes the demolition of the Administration Building, a PWA Moderne building at the focal point of the 1930s Campus. It is approximately 35 feet away from the Auditorium, approximately 45 feet away from the Physical Education Building, and approximately 50 feet away from the Cafeteria, and it is stylistically integrated with all three of those buildings. It is approximately 125 feet away from the nearest corner of Shop No. 1 and Shop No. 2, which are less stylistically distinctive but are nonetheless a coherent part of the 1930s Campus and the resulting historic district.

41 Sapphos Environmental, Inc. 2014. Los Angeles Unified School District Historic Context Statement, 1870 to 1969. Prepared for Los Angeles Unified School District, Office of Environmental Health and Safety.

Although none of the six Public Works Administration (PWA)–era buildings are individually eligible as a historic landmark, together they are worth more than the sum of their parts. Each of them is a historic district contributor—part of a "varied collection of buildings, differentiated by function and use" as indicated in the above-stated eligibility criteria.

Demolition of the Administration Building would result in a less than significant impact, based on California Register of Historical Resources (CRHR) eligibility criteria, because the remaining five PWA-era buildings would, with application of LAUSD Standard Conditions of Approval (SCs) and appropriate mitigation measures, continue to maintain sufficient collective coherence, and sufficient integrity of *location, design, setting, materials, workmanship, feeling,* and *association*, to constitute a regionally important historic district. In short, the five buildings would continue to function as key elements of a historic campus. Although the remaining buildings would retain regional significance as a District, in the absence of the Administration Building, the PWA-era Campus would not rise to the level of national significance. Based on NRHP eligibility criteria, demolition of the Administration Building would result in a significant impact because, without this central component, the historic district would no longer constitute a fully intact and exemplary PWA Moderne campus core. Due to removal of the Administration Building from the historic district, a significant and unavoidable impact to this historic resource would occur because the remaining five PWA-era buildings would no longer maintain sufficient collective coherence and sufficient integrity of *location, design, setting, materials, workmanship, feeling,* and *association*, to rise to the level of an NRHP eligible historic district.

As required by SC-CUL-1 and SC-CUL-2, a qualified Historic Architect will be part of the design team to ensure that the Project would be designed in compliance with the Secretary of Interior's Standards for the Treatment of Historic Properties (SOI Standards) and LAUSD Design Guidelines and Treatment Approaches for Historic Schools. Any new construction would comply with SOI Standards to be compatible with the size, scale, and height of the remaining contributing buildings and landscape features and would not destroy spatial relationships that characterize the historic district. Per SC-CUL-3 (and further defined by SC-N-7), a Temporary Protection Plan will be prepared to protect the five remaining PWA-era contributors to the historic district during construction. SC-CUL-4 requires that the Administration Building be properly photo-documented prior to demolition. SC-CUL-5 requires the construction contractor to submit a Historic Treatment Plan to protect, repair, and replace historic materials and features, as required by LAUSD Design Specification 01 3591. This includes provisions to reuse or display salvage materials and features that may have historic significance.

MM-CUL-1 requires the provision of an Interpretive Program that contains information regarding the history of the Irving MS Campus, and specifically the Administration Building. Potential elements of such an Interpretive Program could include:

- Physical exhibit located on the Irving MS Campus. Potential location of an exhibit could be in the new construction building that will replace the demolished Administration Building, or potentially an Interpretive Garden or landscape/hardscape feature that is placed in the location of the demolished Administration Building. Historical salvage materials may be incorporated or displayed as part of the exhibit.
- Creation of a brochure or website that includes both text and historical images of the Irving MS Campus, including the Administration Building.

## Mitigation Measures

**MM-CUL-1.** To communicate information on the historic development and character of Irving MS, including the Administration Building, an Interpretative Program shall be developed and implemented. This Interpretive Program shall be accessible to the general public and include information on the history and architecture of the Campus (both exterior and interior), from the founding of the City (1781, incorporated 1850) until 1939, when the contributing buildings were completed. A historical architect, historian, or architectural historian who meets the Secretary of the Interior's professional qualifications shall be engaged to research and write the information to be provided in the Interpretive Program. The Interpretive Program shall be initiated within 1 year of the approval of the Project and shall be completed by substantial completion of construction.

Following implementation of the LAUSD SCs and MM-CUL-1, the impact of the Project on historic resources would result in a less than significant impact based on CRHR eligibility criteria. However, as discussed above, even after application of implementation of SCs and MM-CUL-1, demolition of the Administration Building would result in a significant and unavoidable impact with respect to the NRHP eligibility criteria. This is discussed further in the Draft EIR Chapter 4, Section 4.3, *Significant Environmental Effects That Cannot Be Avoided if the Project Is Implemented.*

## Finding

The Board of Education finds that the significant impact is acceptable due to the specific economic, legal, social, technological, or other benefits of the Project, as discussed below in Chapter 6, *Statement of Overriding Considerations*, and these benefits outweigh the significant effects on the environment. These overriding considerations support adoption of the Project.

# 4. Findings Regarding Project Alternatives

## 4.1 Project Objectives and Legal Requirements

CEQA requires that an EIR consider a reasonable range of feasible alternatives (Section 15126.6(a)). According to the CEQA Guidelines, alternatives should be those that would attain most of the basic project objectives and avoid, or substantially lessen, one, or more, significant effects of the project (Section 15126.6). The "range of alternatives" is governed by the "rule of reason," which requires the EIR to set forth only those alternatives necessary to permit an informed and reasoned choice by the lead agency and to foster meaningful public participation (Section 15126.6(f)).

CEQA also requires that the feasibility of alternatives be considered. The CEQA Guidelines Section 15126.6(f)(1) states that among the factors that may be taken into account in determining feasibility are: site suitability; economic viability; availability of infrastructure; general plan consistency; other plans and regulatory limitations; jurisdictional boundaries; and (when evaluating alternative project locations) whether the proponent can reasonably acquire, control, or otherwise have access to an alternative site. Furthermore, an EIR need not consider an alternative whose effects could not be reasonably identified, whose implementation is remote, or speculative, or that would not achieve the basic project objectives.

The alternatives addressed in the EIR were identified in consideration of the factors listed below.

- The extent to which the alternative could avoid, or substantially lessen, the identified significant environmental effects of the proposed project
- The extent to which the alternative could accomplish basic objectives of the proposed project
- The feasibility of the alternative
    - Including economic viability or regulatory limitations
- The requirement of the State CEQA Guidelines to consider a "no project" alternative

CEQA Guidelines Section 15126.6(e)(1) states that a no project alternative shall also be evaluated along with its impacts. The purpose of describing and analyzing a no project alternative is to allow decision-makers to compare the impacts of approving the proposed project with the impacts of not approving the proposed project. The no project alternative analysis is not the baseline for determining whether the proposed project's environmental impacts may be significant, unless it is identical to the existing environmental setting analysis which does establish that baseline.

LAUSD has established the following objectives for the Project:

- **Objective #1:** Buildings meeting AB 300 criteria for seismic evaluation may be addressed, to the extent feasible, with a focus on those determined to have a high seismic vulnerability, through retrofit, removal, or seismic modernization, which will be determined based on an assessment of the seismic vulnerability of the building(s), the historic context of the building/site, actual or potential impact to the learning environment, site layout, and the approach that best ensures compliance with Division of the State Architect (DSA) requirements.

- **Objective #2:** The buildings, grounds, and site infrastructure that have significant/severe physical conditions that already do or are highly likely in the near future to pose a health and safety risk, or negatively impact a school's ability to deliver the instructional program and/or operate may be addressed by repair or replacement.

- **Objective #3:** The District reliance on relocatable buildings, especially for K–12 instruction, should be reduced.

- **Objective #4:** Necessary and prioritized upgrades must be made throughout the school site in order to comply with the program accessibility requirements of the Americans with Disabilities Act (ADA) Title II Regulations, and the District's Self-Evaluation and Transition Plan under Title II of the ADA.

- **Objective #5:** The exterior conditions of the school site will be enhanced around new buildings and/or areas impacted by construction to improve the visual appearance including landscape and hardscape.

- **Objective #6:** Outdoor learning environments will be developed where the site layout and project planning provide the opportunity.

CEQA does not require adoption of an alternative that does not adequately meet project objectives as determined by the lead agency decision makers. A feasible alternative must meet most if not all of these project objectives.

### Finding

The Board of Education finds that the Project meets all of the above objectives and is feasible. The Board finds that as discussed below, all alternatives are infeasible due to economic, legal, social, technological, and other considerations including policy considerations and the inability of the alternatives to meet most of the Project objectives, as discussed below.

## 4.2 Findings Regarding Alternatives Considered in the EIR

In Chapter 5, Alternatives, LAUSD analyzed two alternatives to the Project. Table 4.2-1, *Alternative Comparison*, presents the significance determinations for each environmental impact discussion for the Project and each alternative, and how impacts of the alternatives compare to the Project. The table provides a means for the reader to review and compare the alternatives to each other, and to the Project. Table 4.2-2, *Consistency with Project Objectives*, demonstrates each alternative's consistency with the Project objectives.

**TABLE 4.1-1**
**ALTERNATIVE COMPARISON**

| Environmental Issue | Project | Alternative 1: No Project/ No Build | Alternative 2: Retain Entire Existing Administration Building |
|---|---|---|---|
| **Air Quality** | | | |
| Air Quality Plan | LS | NI (L) | LS (L) |
| Criteria Pollutant | LS | NI (L) | LS (L) |
| Sensitive Receptors | LS | NI (L) | LS (L) |
| **Cultural Resources** | | | |
| Historical Resources | SU | NI (L) | LS (L) |
| **Greenhouse Gas Emissions** | | | |
| Emissions Generation | LS | NI (L) | LS (L) |
| GHG Reduction Plan, Policy, or Regulation | LS | NI (L) | LS (L) |
| **Hazards & Hazardous Materials** | | | |
| Transport, Use, or Disposal of Hazardous Materials | LSM | NI (L) | LSM (E) |
| Accidental Release of Hazardous Materials | LSM | NI (L) | LSM (E) |
| Hazardous Emissions Near a School | LSM | NI (L) | LSM (E) |
| Hazardous Materials Cleanup Site | LSM | NI (L) | LSM (E) |
| **Noise** | | | |
| Noise Levels in Excess of Standards | LS | NI (L) | LS (E) |
| Excessive Ground-Borne Vibration | LS | NI (L) | LS (E) |
| **Pedestrian Safety** | | | |
| Safey Hazards Due to Design Feature or Incompatible Uses | LS | NI (L) | LS (G) |
| Unsafe Routes to Schools | LS | NI (L) | LS (E) |
| Adjacency to Major Roadway Safety Hazard | LS | NI (L) | LS (E) |
| **Transportation & Traffic** | | | |
| Circulation System Program, Plan, Ordinance, or Policy Conflicts | LS | NI (L) | LS (E) |
| Hazards Due to Geometric Design Feature | LS | NI (L) | LS (G) |
| Emergency Access | LS | NI (L) | LS (G) |

**Note:** NI = No Impact; LS = Less than Significant; LSM = Less than Significant with Mitigation.
(L) = Less than Project; (G) = Greater than Project; (E) = Equivalent to Project.

**TABLE 4.1-2**
**CONSISTENCY WITH PROJECT OBJECTIVES**

| Objective | Project | Alternative 1: No Project/ No Build | Alternative 2: Retain Entire Existing Administration Building |
|---|---|---|---|
| 1 | The Project would retrofit or replace two buildings meeting AB 300 criteria for seismic evaluation: Administration Building and Auditorium. | **Inconsistent:** Seismic vulnerability of the Administration Building and Auditorium would not be addressed. | **Partially Consistent:** Seismic vulnerability of the Administration Building would not be addressed. However, the Auditorium, and other existing classrooms within 50 feet of the trace of an active fault would be addressed. |
| 2 | The Project would reduce health and safety risks with building replacement and retrofit. | **Inconsistent:** Seismic vulnerability of the Administration Building, Auditorium, and other existing classrooms within 50 feet of the trace of an active fault would not be addressed. | **Partially Consistent:** Seismic vulnerability of the Administration Building would not be addressed. However, the Auditorium, and other existing classrooms within 50 feet of the trace of an active fault would be addressed. |
| 3 | The Project would replace 11 relocatable buildings with permanent classroom buildings. | **Inconsistent:** Five existing relocatable buildings for K–12 instruction would be retained. | **Consistent:** Five relocatable buildings would be removed. |
| 4 | The Project would include necessary ADA upgrades. | **Inconsistent:** No ADA upgrades would be made. | **Consistent:** ADA upgrades would be made. |
| 5 | The Project would include landscape and hardscape enhancements. | **Inconsistent:** No enhancement of exterior conditions of the school site to improve the visual appearance of the landscape and hardscape would be made. | **Consistent:** Landscape and hardscape enhancements would be made. |
| 6 | The Project would provide additional outdoor learning and gathering spaces for its students. | **Inconsistent:** No outdoor learning environments would be developed. | **Consistent:** Outdoor learning environments would be developed. |

## Alternative 1: No Project/No Build Alternative

The No Project/No Build Alternative assumes that the Project site would remain as it is in existing conditions. A total of 154,057 square feet of existing permanent and portable buildings would remain on the Campus. No demolition or construction of new buildings would occur on the Project site, and the existing facilities and infrastructure would continue to be susceptible to seismic damage and deteriorate. The Campus would continue to rely on portable classroom buildings and existing classrooms would remain undersized and compromised without specialty spaces. Only essential repairs such as repair of portable classrooms, replacement of lead pipes, and maintenance of fire alarm and fire suppression systems would occur over time.

The majority of the southwestern section and a small part of the middle section of the Administration Building would continue to rest in the 50-foot-wide zone adjacent to an active fault zone where it is possible there could be ground rupture during a major earthquake. Ground rupture is likely to severely damage the Administration Building structure south of the southernmost seismic joint.

### Finding

The Board of Education finds that specific economic, financial, legal, social, technological or other considerations, including policy considerations, make Alternative 1, No Project/No Build Alternative, infeasible and rejects this alternative.

As set forth in detail in Chapter 5 of the Draft EIR, and in Table 4.2-1 above, Alternative 1 would reduce impacts compared to the Project in relation to air quality, cultural resources, greenhouse gas emissions, hazards & hazardous materials, noise, pedestrian safety, and transportation & traffic. No mitigation measures would be implemented for hazards & hazardous materials or cultural resources. The significant and unavoidable impact in relation to cultural resources would not occur.

As set forth in detail in Chapter 5 of the Draft EIR, and in Table 4.2-2 above, Alternative 1 would not achieve any of the Project Objectives #1 through #6.

For the reasons described above, the Board of Education finds that Alternative 1 does not meet Project objectives and is not feasible.

## Alternative 2: Retain Entire Existing Administration Building

Under this alternative, the Administration Building would remain as-is. The two other permanent buildings (Homemaking Building and Classroom Building) totaling 8,493 square feet would be demolished and two new structures (M&O #1 and Modular Classroom Building for City of Angels) totaling 5,000 square feet would be constructed (see Table 5-1). There would be no change in the square footage of portable buildings removed or existing buildings to remain as-is on Campus. There would be a 55,000-square-foot decrease in new construction area.

This alternative would make no changes to the exterior of the Administration Building, which would thus retain its eligibility as a district contributor, exemplifying the PWA Moderne architectural style. The distinctive features of horizontal lines, rhythmic façade, symmetry, and central entry point would be retained under this alternative, which has been considered for its potential to reduce significant impacts of the Project to historic resources.

Under this alternative, the Administration Building would remain in the fault zone as a grandfathered nonconforming structure. A voluntary seismic retrofit, as detailed in Appendix 9, would not take place and would not exceed the 50 percent building replacement threshold established by CAC Section 4-309(c)1. Therefore, the building would remain seismically vulnerable.

Additionally, by leaving the Administration Building as-is, classrooms spaces would continue to fail to align with the current educational standards of the District. The building contains 25 classrooms. Four classrooms meet the square footage requirements of the district (960 square feet for general classrooms and 1,300 square feet for science and specialty classrooms). Fifteen are significantly undersized and range from 801 to 1,040 square feet. Six are severely undersized and range from 730 to 799 square feet. Thus, only 4 out of 25 classrooms meet the square footage requirements. As a STEAM magnet school, Irving MS attracts students from diverse backgrounds, drawn by its project-based learning in science, math, and technology. However, the inadequacy of the existing classrooms poses a substantial obstacle to delivering an equitable education experience. Not a single classroom in the existing Administration Building meets the minimum square footage standard of 1,300 square feet, which is essential for accommodating specialized learning environments such as science labs. The school would therefore need to continue to rely on portable classrooms to deliver the specialized STEAM instructional programs that the school offers.

### Finding

The Board of Education finds that specific economic, financial, legal, social, technological or other considerations, including policy considerations, make Alternative 1, Retain Entire Existing Administration Building, infeasible and rejects this alternative.

As set forth in detail in Chapter 5 of the Draft EIR, and in Table 4.2-1 above, Alternative 2 would reduce impacts compared to the Project in relation to air quality, cultural resources, and greenhouse gas emissions. Mitigation Measure MM-CUL-1 would not be implemented. The significant and unavoidable impact in relation to cultural resources would not occur.

Alternative 2 would result in similar impacts compared to the Project in relation to hazards & hazardous materials, noise, pedestrian safety, and transportation & traffic. Mitigation measures MM-HAZ-1, MM-HAZ-2, MM-HAZ-3, and MM-HAZ-4 would be implemented as with the Project.

As set forth in detail in Chapter 5 of the Draft EIR, and in Table 4.2-2 above, Alternative 2 would be consistent with Project Objectives #3 through #6. However, it would only be partially consistent with Objectives #1 and #2. This alternative would be less consistent with Section CAC 4-317(c) of the California Building Code than the Project, which indicates that no school building shall be constructed, rehabilitated (i.e., seismic retrofit), reconstructed, or relocated within 50 feet of the trace of an active fault. The Administration Building retrofit would be very expensive and still located within 50 feet of the trace of an active fault.

For the reasons described above, the Board of Education finds that Alternative 2 does not meet Project objectives and is not feasible.

# 5. Findings Regarding the Environmental Review Process and Content of the Final EIR

## 5.1 Incorporation of Final EIR by Reference

The Draft EIR evaluated the Project, as well as two Alternatives to the Project. For the purposes of these Findings, the Project is defined to mean the Project evaluated in the EIR.

The Final EIR consists of: (1) the complete Draft EIR, (2) all appendices to the Draft EIR; (3) Chapter 7, "Final EIR Introduction;" (4) Chapter 8, "Errata"; (5) Chapter 9, "Comment Letters and Responses to Comments"; and Chapter 10, "Mitigation Monitoring and Reporting Program." The Final EIR Chapter 8 includes a list of persons, organizations, and public agencies commenting on the Draft EIR; LAUSD's written responses to specific comments on significant environmental points raised in the public review and consultation process; and copies of comments, as required by CEQA Guidelines Section 15132. The Final EIR, consisting of the aforementioned components, is hereby incorporated by reference into these Findings.

## 5.2 Final EIR Certification and Project Approval Process

The Board of Education will review and consider the information contained in the Final EIR, as well as submissions from public officials, public agencies and the general public. Prior to Project approval, the Board of Education shall certify that the Final EIR reflects LAUSD's independent judgment and analysis. Having considered the foregoing information, as well as any and all other information in the record, the Board of Education shall make findings pursuant to CEQA Section 21081. In accordance with the provisions of CEQA and the CEQA Guidelines, the Board of Education shall adopt the Findings (as discussed in this Findings of Fact and Statement of Overriding Consideration) as part of its certification of the Final EIR for the Project.

## 5.3 Location and Custodian of Documents

Section 15091(e) of the California Code of Regulations, California Environmental Quality Act Guidelines, requires the public agency to specify the location and custodian of the documents or other materials that constitute the record of proceedings upon which the decision is based.

The documents and other materials that constitute the Record of Proceedings on which LAUSD's Findings of Fact are based are located at the LAUSD Office of Environmental Health & Safety (OEHS), 333 South Beaudry Avenue, 21st Floor, Los Angeles CA 90017.

The custodian of these documents is the LAUSD OEHS. This information is provided in compliance with Public Resources Code Section 21081.6(a)(2) and 14 Cal. Code Regs. Section 15091(e).

For purposes of CEQA and these Findings, the Record of Proceedings for the Project consists of the following documents and other evidence, at a minimum:

- The NOP and all other public notices issued by the County in conjunction with the Project;

- The Final EIR for the Project;
- The Draft EIR;
- All written comments submitted by agencies or members of the public during the public review comment period on the Draft EIR;
- All responses to written comments submitted by agencies or members of the public during the public review comment period on the Draft EIR;
- All written and verbal public testimony presented during a noticed public hearing for the Project;
- The reports and technical memoranda included or referenced in the Response to Comments;
- All documents, studies, or other materials incorporated by reference in the Draft EIR and Final EIR;
- The Resolutions adopted by the District in connection with the Project, and all documents incorporated by reference therein, including comments received after the close of the comment period and responses thereto;
- Matters of common knowledge to the District, including but not limited to federal, state, and local laws and regulations;
- Any documents expressly cited in these Findings; and
- Any other relevant materials required to be in the record of proceedings by Public Resources Code Section 21167.6(e).

## 5.4 Certification Regarding Independent Judgment

Pursuant to Section 21082.1(c) of the Public Resources Code, the District certifies that the Board of Education, as the governing board for the Los Angeles Unified School District, has independently reviewed and analyzed the Final EIR. The Los Angeles Unified School District reviewed the Draft PEIR and supporting technical appendices and required changes to those documents prior to circulation for public review. The Draft EIR circulated for public review reflected the independent judgment of the District. The Final EIR similarly has been subject to review and revision by the District staff and reflects the independent judgment of the Board of Supervisors.

## 5.5 Relationship of Findings to the EIR

Pursuant to CEQA, on the basis of the review and consideration of the Final EIR, the Board of Education finds that all information added to the Final EIR in response to comments on the Draft EIR merely clarifies, amplifies, or makes insignificant modifications to an already adequate EIR pursuant to CEQA Guidelines Section 15088.5(b) and that no significant new information has been received that would require recirculation.

## 5.6 Mitigation Monitoring and Reporting Program

A Mitigation Monitoring and Reporting Program (MMRP) has been prepared to monitor and report the implementation of the Standard Conditions (SCs) and mitigation measures identified for the Project. The MMRP will be adopted by the Board of Education concurrently with these findings, and will be implemented by LAUSD during the Project's review, construction and post-construction periods. To the extent that these findings conclude that all mitigation measures outlined in the EIR are feasible and have not been modified, superseded, or withdrawn, LAUSD hereby binds itself to implement these measures. These findings, therefore, are not merely informational, but rather constitute a binding set of obligations that will come into effect when the Board of Education formally approves the Project.

## 5.7 CEQA Guidelines Section 15091 and 15092 Findings

Based on the foregoing findings and the information contained in the record, the Board of Education has made the required findings with respect to the significant impacts on the environment resulting from the Project pursuant to Section 15091 of the CEQA Guidelines.

- Specific economic, legal, social, technological, or other considerations, including provision of employment opportunities for highly trained workers, make infeasible the mitigation measures or project alternatives identified in the Final EIR.

Based on the foregoing findings and the substantial evidence contained in the record, and as conditioned by the foregoing findings:

- All significant effects on the environment due to the program have been eliminated or substantially lessened where feasible.

- Any remaining significant effects on the environment found to be unavoidable are acceptable due to the environmental health and social benefits set forth in the Statement of Overriding Considerations.

Section 15092 of the CEQA Guidelines states that after consideration of an EIR, and in conjunction with the Section 15091 findings identified above, the Lead Agency may decide whether or how to approve or carry out the project. The Lead Agency may approve a project with unavoidable adverse environmental effects only when it finds that specific economic legal, social, technological, or other benefits of the proposed project outweigh those effects. Section 15093 requires the lead agency to document and substantiate any such determination in a "statement of overriding considerations" as a part of the record.

The Board of Education finds and determines that it has considered the identified means of lessening or avoiding the Project's significant effects and that to the extent any significant direct or indirect environmental effects, including cumulative Project impacts, remain unavoidable or not reduced to below a level of significance after mitigation, such impacts are acceptable in light of the social, legal, economic, environmental, technological, and other Project benefits, and such benefits override, outweigh, and make "acceptable" any such remaining environmental impacts of the Project.

## 5.8 Nature of Findings

After balancing the specific economic, legal, social, technological, and other benefits of the Project, the Board of Education has determined that the unavoidable adverse environmental impacts identified may be considered "acceptable" due to the specific considerations listed above which outweigh the unavoidable, adverse environmental impacts of the Project.

The Board of Education has considered information contained in the Final EIR as well as the public testimony and record of proceedings in which the Project was considered. Recognizing that significant unavoidable impacts will occur to cultural resources from construction of the Project, the Board of Education adopts the Statement of Overriding Considerations (Chapter 6). Having recognized all unavoidable significant impacts, the Board of Education hereby finds that each of the separate benefits of the proposed program, as stated herein, is determined to be unto itself an overriding consideration, independent of other benefits, that warrants approval of the Project and outweighs and overrides its unavoidable significant effects, and thereby justifies the approval of the Project.

Based on the foregoing findings and the information contained in the record, it is hereby determined that

a. All significant effects on the environment due to approval of the Project have been eliminated or substantially lessened where feasible; and

b. Any remaining significant effects on the environment found to be unavoidable are acceptable due to the factors described in the Statement of Overriding Considerations.

# 6. Statement of Overriding Considerations

The Final EIR for the Project has identified significant and unavoidable impacts that will result from implementation of the Project. These significant and unavoidable impacts will occur in the following environmental impact category:

- The demolition of historical resources is defined in *State CEQA Guidelines,* Section 15064.5. As defined in Section 3.2, *Cultural Resources*, the Campus is identified as an eligible historic district recommended for listing in the National Register of Historic Places (NRHP) based on criteria 3S due to its association with the PWA Moderne style and LAUSD, Post-1933 Long Beach Earthquake School Plants, 1933–1945. The historic district is comprised of six contributor buildings, namely, the Administration Building, Auditorium, Physical Education Building, Cafeteria, Shop No. 1, and Shop No. 2, all built from 1937 to 1939. None of the six contributors to the eligible historic district are individually eligible historic resources. The contributors and the priority of significance of each are listed in the Draft EIR in Table 3.2-2, *HRER Historic District Eligibility: Recommended Contributors to the Washington Irving Middle School District*. The six historic contributor buildings are shown in Draft EIR Figure 2-3, *Existing Site Plan and Context Photos*. The buildings proposed for demolition, including the Administration Building (historical contributor), are shown in Draft EIR Figure 2-7, *Demolition Plan*. Demolition of the Administration Building would result in a less than significant impact, based on California Register of Historical Resources (CRHR) eligibility criteria, because the remaining five PWA-era buildings would, with application of LAUSD SCs and appropriate mitigation measures, continue to maintain sufficient collective coherence, and sufficient integrity of *location, design, setting, materials, workmanship, feeling,* and *association*, to constitute a regionally important historic district. Based on NRHP eligibility criteria, demolition of the Administration Building would result in a significant impact because, without this central component, the historic district would no longer constitute a fully intact and exemplary PWA Moderne campus core. Due to removal of the Administration Building from the historic district, a significant and unavoidable impact to this historic resource would occur because the remaining five PWA-era buildings would no longer maintain sufficient collective coherence and sufficient integrity of *location, design, setting, materials, workmanship, feeling,* and *association*, to rise to the level of an NRHP eligible historic district.

These impacts are identified in the findings adopted by LAUSD pursuant to Section 15091 of Title 14 of the California Code of Regulations.

The lead agency's decision-making body under CEQA must balance the economic, legal, social, technological or other benefits of a project against its unavoidable environmental risks when determining whether to approve the project (see also Cal. Code Regs., Title 14, §15093). If the benefits of the project outweigh the unavoidable adverse effects, those effects may be considered acceptable. CEQA requires the agency to provide written findings supporting the specific reasons for considering a project acceptable when significant impacts are unavoidable. Those reasons are provided in this Statement of Overriding Considerations.

LAUSD finds that the economic, social, planning, and other benefits of the Project outweigh the significant and unavoidable impacts identified in the Final EIR and in the Record. In making this finding, LAUSD has balanced the benefits of the Project against its unavoidable impacts and has indicated its willingness to accept those adverse impacts. LAUSD further finds that each one of the following benefits of the Project, on its own merit and collectively with the other benefits, warrant approval of the Project notwithstanding the significant and unavoidable impacts of the Project:

The following six core objectives have been established for Major Modernization Projects undertaken under the SUP:

1. The buildings that have been identified as requiring seismic upgrades must be addressed.
2. The buildings, grounds and site infrastructure determined to have significant/severe physical conditions; that already do, or are highly likely (in the near future) to pose a health and safety risk; or that negatively impact a school's ability to deliver the instructional program and/or operate, must be addressed.
3. The school's reliance on relocatable buildings, especially for K-12 instruction, should be significantly reduced.
4. Necessary and prioritized upgrades must be made throughout the school site in order to comply with the program accessibility requirements of the Americans with Disabilities Act (ADA) Title II Regulations, and the provisions of the Modified Consent Decree (MCD).
5. The exterior conditions of the school site should be addressed to improve the visual appearance including landscape, hardscape, and painting.
6. The interior physical conditions of classroom buildings that would otherwise not be addressed should be improved.

As these objectives, goals, and principles are applied to Irving MS and community, the following project-specific objectives have been developed:

**Objective #1:** Buildings meeting AB 300 criteria for seismic evaluation may be addressed, to the extent feasible, with a focus on those determined to have a high seismic vulnerability, through retrofit, removal, or seismic modernization, which will be determined based on an assessment of the seismic vulnerability of the building(s), the historic context of the building/site, actual or potential impact to the learning environment, site layout, and the approach that best ensures compliance with Division of the State Architect (DSA) requirements.

Consistent with Objective #1, Irving MS was identified for a seismic evaluation consisting of a study for seismic strength by the Facilities Team, which determined that the Campus buildings needed certain levels of upgrade and retrofit. The Project site is located entirely within an Alquist Priolo Earthquake Fault Zone, with the Hollywood Fault and the Raymond Fault running beneath the Campus.[42] The Hollywood Fault is estimated to be located in the southern corner of the Campus running west beneath the New Classroom Building and the Soccer Field; the Raymond Fault is estimated to be located in the north corner of the site running west beneath the Athletic Field; and a postulated fault is estimated to run west beneath the Homemaking Building, Classroom

[42] California Department of Conservation, California Geological Survey. N.d. Earthquake Zones of Required Investigation https://maps.conservation.ca.gov/cgs/EQZApp/app/ (accessed August 17, 2023)

Building, Administration Building, and bungalows. The Project is being undertaken to alleviate existing structural and seismic deficiencies in Campus buildings and to address the risks associated with the postulated fault. In addition to potential for fault rupture, three buildings on Campus (Administration Building, Auditorium, and Physical Education Building) have been found to have structural deficiencies (see Draft EIR Table 2-2, *Characteristics of Existing Buildings*).[43] The Administration Building has insufficient seismic gaps, overstressed shear walls, and diaphragm openings that are too large. The Auditorium has insufficient wall anchorage and diagonal sheathing at the diaphragm. The Physical Education Building has overstressed shear walls and insufficient wall anchorage at the diaphragm. The buildings' existing structural deficiencies currently pose greater risks of loss, injury, or death than other buildings if fault rupture were to occur.

The buildings on the Campus range in condition from good to critical.[44] Most of the buildings are in poor condition. The Homemaking Building, Cafeteria, New Classroom Building, and Shop Building #2 are all in critical condition, with HVAC and Fire Protection being the primary concerns cited in the Facilities Condition Index as well as by the site observation team. Assembly Bill (AB) 300, enacted in 1999, required the State of California Department of General Services (DGS) to survey the State's public school buildings (grades K–12) for earthquake safety and to submit a report of its findings to the Legislature.[45] In addition, AB 300 was amended in 2001 adding Section 17317, required the DGS to be in consultation with the Seismic Commission for conducting an inventory of public school buildings that did not meet the minimum requirements of the 1976 Uniform Building Code.[46] Since 2006, 667 of LAUSD's buildings have been identified for seismic evaluation based upon AB 300 criteria and LAUSD's higher standards. Since that time, seismic evaluations have been performed on school buildings identified to be the most seismically vulnerable, and projects have been developed to address the buildings determined to be in the greatest need of structural upgrades. The three buildings on the AB 300 list (Administration Building, Auditorium, and Physical Education Building) have all been found to have structural deficiencies. The Administration Building has insufficient seismic gaps, overstressed shear walls, and diaphragm openings that are too large. The Auditorium has insufficient wall anchorage and diagonal sheathing at the diaphragm. The Physical Education Building was found in the Site Analysis and Development Report to have overstressed shear walls and insufficient wall anchorage at the diaphragm. The Administration Building is located in a fault zone. The Classroom Building, Homemaking Building, New Classroom Building, and Shop Building #2 are located on the fault. The Physical Education Building is located outside the postulated fault zone, within the 50-foot setback area. All six bungalow classrooms are either located on the fault or within the 50-foot setback area.

The Project would replace the removed Administration Building, Homemaking Building, a permanent classroom building, and multiple portable buildings with new construction at least 50 feet away from the known fault. The modernization of the Campus would facilitate a safe and secure Campus that is better aligned with

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43 NAC Architecture for Los Angeles Unified School District. February 3, 2023. Irving Steam Magnet Middle School Site Analysis and Development Report.

44 NAC Architecture for Los Angeles Unified School District. February 3, 2023. Irving Steam Magnet Middle School Site Analysis and Development Report.

45 Los Angeles Unified School District. N.d. Seismic Safety of School Buildings. https://www.lausd.org/Page/18943 (accessed November 2, 2023).

46 California Legislative Information. N.d. Article 3, Section 17317. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=EDC&sectionNum=17317 (accessed July 11, 2024).

the current instructional program and meets current DSA requirements and educational specifications. Structurally vulnerable buildings located on an identified earthquake fault would be demolished and replaced by a new building that will improve educational quality and safety for students and staff. The Project also includes essential upgrades, including seismic retrofit of the Auditorium Building outside of the earthquake fault, the removal of barriers and other accessibility upgrades, and various landscape and hardscape improvements (see Draft EIR Table 2-3, *Proposed Project [Demolition, Removal, and Construction]*). Seismic retrofitting would be completed in compliance with the seismic safety requirements of the LAUSD Supplemental Geohazard Assessment Scope of Work, California Building Code, Division of State Architect, and California Department of Education.

The Project would result in demolition and/or modifications to existing buildings, including historic buildings and resources. However, the Project would be designed to preserve and/or enhance character-defining features associated with the Campus, while avoiding the earthquake fault. Additionally, the Project would be designed and implemented in a manner that complies with the LAUSD Design Guidelines and Treatment Approaches for Historic Schools.[47]

**Objective #2:** The buildings, grounds, and site infrastructure that have significant/severe physical conditions that already do or are highly likely in the near future to pose a health and safety risk, or negatively impact a school's ability to deliver the instructional program and/or operate may be addressed by repair or replacement.

Consistent with Objective #2, the Project is being undertaken to alleviate existing structural and seismic deficiencies in Campus buildings and to address the risks associated with the postulated fault. The Raymond Fault is estimated to be located in the north corner of the Irving MS Campus, running west beneath the Athletic Field; and a postulated fault is estimated to run west beneath the Homemaking Building, Classroom Building, Administration Building, and bungalows. In addition to potential for fault rupture, three buildings on the Campus (Administration Building, Auditorium, and Physical Education Building) have been found to have structural deficiencies (see Draft EIR Table 2-2, *Characteristics of Existing Buildings*).[48] The Administration Building has insufficient seismic gaps, overstressed shear walls, and diaphragm openings that are too large. The Auditorium has insufficient wall anchorage and diagonal sheathing at the diaphragm. The Physical Education Building has overstressed shear walls and insufficient wall anchorage at the diaphragm. The buildings' existing structural deficiencies currently pose greater risks of loss, injury, or death than other buildings if fault rupture were to occur. The buildings on the Campus range in condition from good to critical with most of the buildings in poor condition.[49] The Homemaking Building, Cafeteria, New Classroom Building, and Shop Building #2 are all in critical condition, with HVAC and Fire Protection being the primary concerns cited in the Facilities Condition Index as well as by the site observation team. The three buildings on the AB 300 list (Administration Building, Auditorium, and Physical Education Building) have all been found to have structural deficiencies. The Administration Building has insufficient seismic gaps, overstressed shear walls and diaphragm openings that

47 SWCA Environmental Consultants. January 2015. Los Angeles Unified School District Design Guidelines and Treatment Approaches for Historic Schools. https://www.lausd.org/cms/lib/CA01000043/Centricity/domain/135/pdf%20files/Final_Design_Guidelines.pdf

48 NAC Architecture for Los Angeles Unified School District. February 3, 2023. Irving Steam Magnet Middle School Site Analysis and Development Report.

49 NAC Architecture for Los Angeles Unified School District. February 3, 2023. Irving Steam Magnet Middle School Site Analysis and Development Report.

are too large. The Auditorium has insufficient wall anchorage and diagonal sheathing at the diaphragm. The Physical Education Building was found in the Site Analysis and Development Report to have overstressed shear walls and insufficient wall anchorage at the diaphragm. The Administration Building is located in a fault zone. The Classroom Building, Homemaking Building, New Classroom Building, and Shop Building #2 are located on the fault. The Physical Education Building is located outside the postulated fault zone, within the 50-foot setback area. All six bungalow classrooms are either located on the fault or within the 50-foot setback area.

The Project would replace the removed Administration Building, Homemaking Building, a permanent classroom building, and multiple portable buildings with new construction at least 50 feet away from the known fault. The modernization of the Campus would facilitate a safe and secure Campus that is better aligned with the current instructional program and meets current DSA requirements and educational specifications. Structurally vulnerable buildings located on an identified earthquake fault would be demolished and replaced by a new building that will improve educational quality and safety for students and staff. The Project also includes essential upgrades, including seismic retrofit of the Auditorium Building outside of the earthquake fault, the removal of barriers and other accessibility upgrades, and various landscape and hardscape improvements (see Draft EIR Table 2-3, *Proposed Project [Demolition, Removal, and Construction]*). Seismic retrofitting would be completed in compliance with the seismic safety requirements of the LAUSD Supplemental Geohazard Assessment Scope of Work, California Building Code, Division of State Architect, and California Department of Education.

**Objective #3:** The District reliance on relocatable buildings, especially for K–12 instruction, should be reduced.

Consistent with Objective #3, the elimination of relocatable classrooms from school facilities is a long-term LAUSD goal, as identified in the LAUSD Strategic Execution Plan. Portable classrooms occupy critical acreage and reduce the amount of open space on the school Campus. The Project will eliminate seven portable buildings from the Irving MS Campus and replace them with permanent facilities.

Irving MS has 11 permanent buildings comprising 56 standard classrooms and six portable buildings comprising nine standard classrooms. The Project would involve removal of all five portable bungalows, one sanitary portable, and one service portable structure, 12,172 square feet in total (see Draft EIR Table 2-3). The Project would replace the portable bungalows and three demolished permanent buildings with 56,000 square feet of new permanent administration and classroom building, 2,500 square feet of permanent maintenance and operations building, and 3,500 square feet of permanent modular classroom building for the City of Angels program, consistent with the District objective to reduce reliance on relocatable buildings.

**Objective #4:** Necessary and prioritized upgrades must be made throughout the school site in order to comply with the program accessibility requirements of the Americans with Disabilities Act (ADA) Title II Regulations, and the District's Self-Evaluation and Transition Plan under Title II of the ADA.

Consistent with Objective #4, upgrades would be throughout the Irving MS school site in order to comply with the ADA. In addition to the demolition of existing buildings and construction of new buildings that would be required to comply with the ADA, the Project includes seismic and structural retrofitting for the Auditorium and a Campus-wide fire alarm upgrade. The Project provides for ADA upgrades and accessibility as noted in the LAUSD Self-Evaluation and Transition Plan (SET Plan).[50] The SET Plan notes that programs, benefits, services, and activities provided by public entities must be made accessible to people with disabilities which are key requirements of both the ADA and Section 504, of the Rehabilitation Act of 1973.

Upon completion of the Project, the minimum parking requirements would either be met or exceeded based on the LAUSD School Design Guide and ADA standard requirements. Since the Project will be a design-build effort, the total parking spaces provided would be determined per LAUSD design guide and ADA standards during the design phase and in coordination with LAUSD. According to ADA requirements per Draft EIR Table 2.4, *ADA Requirements – Minimum Number of Accessible Spaces*, six accessible parking spaces will be required based on the total of 104 new parking spaces, of which one of the six would be required to be a "Van-Accessible" space.[51]

After the Project, all existing pedestrian points of entry would remain except for "Octavia Gate 3," which serves as the City of Angels Entrance along Fletcher Drive. This entrance would be relocated, as the City of Angels would be relocated on-Campus. Pavement areas within the Campus would include proper placement, mixing, and compaction of soil fills and maintain clearances of structural footings during trenching per the geotechnical report recommendations while maintaining paths to be ADA compliant. In addition, worn down or damaged paths due to site construction would be repaired.

**Objective #5:** The exterior conditions of the school site will be enhanced around new buildings and/or areas impacted by construction to improve the visual appearance including landscape and hardscape.

Consistent with Objective #5, the Project would include new landscaped areas that contribute to meeting the District Board's goal of 30 percent landscaped areas. Landscaped and hardscaped areas would be designed to be located directly above the fault as only nonstructural construction is permitted in those areas. The Project would improve portions of the parking lots and playgrounds that are located on District property (see development zone in DEIR Figure 2-8, *Proposed Site Plan*).

**Objective #6:** Outdoor learning environments will be developed where the site layout and project planning provide the opportunity.

Consistent with Objective #6, the Project would improve portions of the parking lots and playgrounds that are located on District property (see development zone in DEIR Figure 2-8). Any areas located directly above the fault would be turned into outdoor areas, such as hardscape, landscape, or parking areas. In addition to meeting essential functional and operational needs, the Campus landscape provides opportunities for students, faculty, and staff to engage with nature. The landscaped areas would serve multiple purposes: functional, educational, and experiential.

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50 Los Angeles Unified School District. October 10, 2017. Self-Evaluation and Transition Plan. https://www.lausd.org/cms/lib/CA01000043/Centricity/Domain/821/AAA%20Self-Evaluation%20and%20Transition%20Plan%20Under%20the%20ADA%20APPROVED%20101017.pdf

51 ADA.gov – U.S. Department of Civil Rights Division. September 15, 2010. 2010 ADA Standards for Accessible Design. Available at: https://www.ada.gov/resources/restriping-parking-spaces/ (accessed July 22, 2024).

LAUSD hereby finds that each of the reasons stated above constitutes a separate and independent basis of justification for the Statement of Overriding Considerations, and each independently supports the Statement of Overriding Considerations and overrides the significant and unavoidable environmental effects of the Project. In addition, each reason is independently supported by substantial evidence contained in the Record.

For the above-mentioned reasons, the LAUSD Board of Education hereby finds that the benefits of the Irving MS Major Modernization Project outweigh and override any adverse environmental impacts associated with the Project.